SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 04/22/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-
https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09
ID: 161 950 4895
Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-02438
CASE NAME: RYAN JONES VS. JAMES JEWELL
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****
This Case Management Conference (CMC) trails the hearing on the demurrer, Line 3. If the tentative ruling is not contested, then no appearance is required on April 22, 2026 and this CMC is continued to August 21, 2026 at 8:30 a.m. The Parties are ordered to file a case management conference statement.

2. 9:00 AM CASE NUMBER: C22-02557
CASE NAME: PRANAV MANOJ VS. DOES 1-25, INCLUSIVE
***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL THE HEARING ON MOTION FOR SUMMARY JUDGMENT**

FILED BY:
TENTATIVE RULING:*

This Case Management Conference (CMC) trailed the hearing on the Motion for Summary Judgment filed by Defendant and Cross-Complainant City of Concord. That hearing is vacated. This CMC is continued to August 21, 2026 at 8:30 a.m.. The Parties are ordered to file a case management conference statement.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-02438
CASE NAME: RYAN JONES VS. JAMES JEWELL
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF COMPASS CALIFORNIA, II INC. AND RUTH FRASSETTO
FILED BY: SWARTZ, ALANNA
TENTATIVE RULING:*

Introduction

Before the Court is Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s (collectively referred to as "Vanguard") Demurrer to COMPASS CALIFORNIA, II, INC. and RUTH FRASSETTO's (collectively and hereinafter referred to "Compass") Cross Complaint. The Motion relates to the Compass Cross Complaint for failure to disclose and fraud related causes of action.

Vanguard Cross Defendants demurer to the second [Negligence], fourth [Equitable Indemnity], fifth [Contribution and Equitable Apportionment], sixth [Comparative Indemnity], and seventh [Declaratory Relief] causes of action.

For the reasons explained below, Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s Demurrer is **sustained with leave to amend in part and overruled in part. The Demurrer to the second cause of action for negligence is sustained with leave to amend. The Demurrer as the fourth, fifth, and sixth causes of action for Equitable Indemnity causes of action are overruled.**

Request for Judicial Notice

The Vanguard Cross Defendants request judicial notice of three documents. The first document is Plaintiffs Ryan Jones and Maureen Carroll's Complaint for Violation of Residential Building Standards; Fraud-Intentional Misrepresentation; Negligent Misrepresentation; Breach of Duty to Disclose; Rescission, Case No. C23-02438 ("Bee Complaint") filed on September 27, 2023. The second document is Plaintiffs Ryan Jones and Maureen Carroll's Complaint for Negligence (CCP §2079); Fraud-Intentional Misrepresentation; Negligent Misrepresentation; Breach of Duty to Disclose, Case No. C2-02483 ("Compass Complaint") filed on October 2, 2023. The third document is Cross-Complainants Compass California, II, INC. and Ruth Frassetto's Cross-Complaint for (1) Express Contractual Indemnity, (2) Negligence, (3) Breach of Contract, (4) Equitable Indemnity, (5) Contribution and Equitable Apportionment, (6) Comparative Indemnity, (7) Declaratory Relief, Case No. C23-02438 (Complaint) filed on August 28, 2025.

All three documents are filings in this consolidated matter, and under the Court grants all the **Vanguard Cross Defendants requests for judicial notice.**

Factual Background

The Cross-Complaint alleges Bee purchased the Property in 2020 from the original builder, Mahmood Pourzand. (Cross-Complaint ¶ 3.) The Cross-Complaint alleges that Ms. Frassetto, and her prior employer, The Grubb Company, represented Bee in their purchase of the Property from Mr. Pourzand in 2020. (Id.).The Cross-Complaint alleges that Ms. Frassetto and her new employer Compass represented Bee, as the sellers in the sale of the Property in 2021. (Cross-Complaint ¶¶ 1, 2.) Vanguard represented Plaintiffs in their purchase of the Property from Bee in 2021. (Cross-Complaint ¶ 5.)

The Cross-Complaint alleges that Plaintiffs and Bee entered an agreement for Plaintiffs to purchase the Property for $3.1M on July 12, 2021. (Cross-Complaint ¶ 9.) The Cross-Complaint alleges that Plaintiffs filed two separate actions against Bee and Compass in connection with Property. (Cross-Complaint ¶¶ 10, 11.) The Cross-Complaint alleges that Plaintiffs, after moving to the Property discovered Bee and Compass failed to disclose material facts and/or complete information related to the Property. (Cross-Complaint ¶ 13.) The Cross-Complaint alleges that Plaintiffs discovered defects at the Property. (Id.)

The Cross-Complaint also alleges that Plaintiffs allege they did not receive a copy of the disclosures (referred to as "historical disclosures.")provided by Mr. Pourzand to Bee during the 2020 sale of the Property between Mr. Pourzand and Bee. (Id.) The Cross-Complaint alleges that Vanguard was aware Bee has purchased the Property from Mr. Pourzand and construction had been halted due to unapproved building modifications from the Seller Property Questionnaire ("SPQ"). (Cross-Complaint ¶ 14.) The Cross-Complaint alleges Vanguard requested the historical disclosures from Ms. Frassetto, and Ms. Frassetto requested the same from her prior employer, and the request was denied. (Cross-Complaint ¶ 15.)

The Cross-Complaint alleges Vanguard failed to investigate the historical disclosure by failing to request them from a difference source. (Cross-Complaint ¶ 16.) The Cross-Complaint alleges that Ms. Frassetto advised Bee that she was unable to obtain the historical disclosures, and that Bee advised they would produce the historical disclosures to Plaintiffs. (Cross-Complaint ¶ 17.) The Cross-Complaint alleges that Bee was in possession of the historical disclosures. (Id.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Second Cause of Action for Negligence

"The elements of a cause of action for negligence are well established. They are "(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” ’ ” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Whether a defendant owes a duty of due care to a particular plaintiff is a question of law. (*Peter W. v. San Francisco Unified Sch. Dist*. (1976) 60 Cal.App.3d 814, 822; 4 Witkin, Summary of Cal. Law (8th Ed. 1974) Torts, § 493, p. 2756.)

Section 2079 requires a broker "to conduct a reasonably competent and diligent visual inspection of the property offered for sale and to disclose to that prospective purchaser all facts materially affecting the value or desirability of the property that such an investigation would reveal . . .." The standard of care is what a reasonably prudent real estate licensee would exercise (§ 2079.2), and disclosure is required on the form used in this case (§ 1102, 1102.6). (*Wilson v. Century 21 Great Western Realty* (1993) 15 Cal.App.4th 298, 305.)

Here, it is alleged that the Vanguard Defendants (defined as Vanguard Properties LLC and its real estate agent Alanna Schwartz) knew of the unapproved building modifications through disclosure of the issues in the Seller Property Questionnaire for the subject 2021 transaction. (Cross-Complaint ¶ 14.)

The gravamen of the Compass’ Cross-Complaint for its second cause of action (negligence) against Vanguard is premised on a duty to procure or obtain documents. Specifically, Cross Complainant Compass alleges that Cross Defendant Vanguard failed to obtain the historical disclosures. (Cross-Complaint ¶ 27.) The Cross Complaint alleges Vanguard requested the historical disclosures from Ms. Frassetto, and Ms. Frassetto requested the same from her prior employer Grubb Co., and the request was denied. (Cross-Complaint ¶ 15.)

On the face of the Compass Cross Complaint, it is alleged that Sellers, Bee Renovated, who was represented by Ms. Frassetto with Compass California in the 2021 transaction, disclosed unapproved building modifications in the Seller Property Questionnaire. (Cross-Complaint ¶ 14.) Although the Court is aware of real estate agents’ duty to disclose, the Court is unaware and Compass Cross Complainants did not cite any authority that stands for their position that the Vanguard Cross Defendants violated a duty by failing to take steps to procure the historical disclosures. The **Demurrer to the second cause of action for negligence is sustained with leave to amend.**

Fourth, Fifth, and Sixth Equitable Indemnity Related Causes of Action

Failure to Disclose May Be Pled as Negligence

California courts have found that a real estate agent’s failure to disclose facts materially affecting the value or desirability of a property may constitute a negligence cause of action. (*Vaill v. Edmonds* (1991) 4 Cal.App.4th 247, 261 [failure to disclose the high groundwater level and the risk of landslides associated with the property would constitute a failure to disclose a material fact resulting in a finding of negligence], citing *Easton v. Strassburger* (1984) 152 Cal.App.3d 90.)

Vanguard Cross Defendants’ main argument demurrer of the fourth, fifth, and sixth causes of action for the Compass Cross Complaint is that Compass cannot seek to be indemnified by Vanguard for Compass’ own fraud and negligent misrepresentation because Plaintiff’s Compass Complaint alleges fraud and negligent misrepresentation against Compass. (Demurrer at p. 11: 17-18.) The Court notes that the first cause of action in Compass Complaint is negligence on the grounds for failure to disclose all facts materially affecting the value or desirability of the Property that an investigation would reveal. (Compass Complaint at ¶¶ 11-16.) The Compass Complaint’s remaining causes of action for fraud-intentional misrepresentation, negligent misrepresentation, and breach of duty to disclose complain of the same factual allegations for failure to disclose as the negligence cause of action and are pled in the alternative of each other. (Compass Complaint at ¶¶ 18-38.)

As the Compass Cross Complainants point out, the Compass Cross Complaint against the Vanguard Cross Defendants is explicitly predicated on negligence and breach of contract theories and does not contain a fraud-based cause of action. (Opposition at p. 7: 19-21.) The Compass Complaint and Cross Complaint properly allege a real estate agent's failure to disclose as negligent based causes of action.

Plaintiffs' May Plead Conflicting Alternative Legal Theories

A plaintiff may plead inconsistent causes of action. (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, 1224.) "When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.) This doubt can arise when plaintiffs are certain of their legal rights but unsure about some of the ultimate facts or when plaintiffs are reasonably certain of the facts but are unsure about their legal rights. (See *Gutirrez v. Southern Pacific Co.* (1959) 174 Cal.App.2d 866, 873.) To accommodate these uncertainties, plaintiffs can generally plead "alternative factual allegations relying on alternative legal theories." (*Williams v. Southern California Gas Co.* (2009) 176 Cal.App.4th 591, 598.)

Given that alternative legal theories may be pled, "it is not proper for the judge to force upon the plaintiff an election between those causes which he has a right to plead." (*Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304 citing *Tanforan v. Tanforan* (1916) 173 Cal. 270, 274.) "Plaintiff is entitled to introduce his evidence upon each and all of these causes of action, and the election, or in other words the decision as to which of them is sustained, is, after the taking of all the evidence, a matter for the judge or the jury." (*Id.*)

This is a consolidated matter and all the causes of action in the Compass Complaint have not been resolved or decided on the merits. Just because there is a fraud cause of action in the Compass Complaint based on failure to disclose, does not instantly preclude Cross Complainant Compass from alleging equitable indemnity claims. It would be premature of the Court to decide on a substantive issue on the merits on a demurrer which is meant to test the sufficiency of the pleadings. The function of a demurrer is to test the sufficiency of the complaint alone and not the evidence or other extrinsic matters. (*Hellum v. Breyer* (2011) 194 Cal.App.4th 1300, 1309 citing *Ingram v. Flippo* (1999) 74 Cal.App.4th 1280, 1283.) The **Demurrer to the fourth, fifth, and sixth causes of action are overruled**.

Seventh Cause of Action for Declaratory Relief

The demurrer to the seventh cause of action is overruled because it was based on the anticipated demurrer of the second, fourth, fifth, and sixth causes of action. Since the Court overruled the demurrer to the fourth, fifth, and sixth causes of action, the **demurrer to the seventh cause of action must also fail based on the argument of there being no actual controversy between the parties**.

Conclusion

For the reasons analyzed above, Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s Demurrer is **sustained with leave to amend in part and overruled in part. The Demurrer to the**

second cause of action for negligence is sustained with leave to amend. The Demurrer as the fourth, fifth, and sixth causes of action for Equitable Indemnity causes of action are overruled.

4. 9:00 AM CASE NUMBER: C23-02955
CASE NAME: NATALIE SCHULTZ VS. BLACKHAWK PLASTIC SURGERY, ET AL.
***HEARING ON MOTION IN RE: SEAL THE INDEX OF EXHIBITS/DECLARATION OF DENISE BILLUPS-SLONE IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT FILED ON JULY 24, 2025**
FILED BY: SCHULTZ, NATALIE
****TENTATIVE RULING:****
Summary

Plaintiff Natalie Schultz's Motion to Seal the Index of Exhibits is unopposed and is **granted**. No appearance is required at the hearing on April 22, 2026.

Analysis

On December 22, 2025, Plaintiff Natalie Schultz filed a Motion to Seal the Index of Exhibits, which was supported by Notice, Memorandum of Points and Authorities, the Declaration of Counsel Denise Billups-Sloane in Support of Motion for Summary Judgment or in the Alternative Summary Adjudication filed on July 24, 2025, the Declaration of counsel Michael S. Biggs, and a proposed order. The Proof of service demonstrating service of this Motion by electronic mail to counsel for Defendants, Dr. Stephen J. Ronan MD and Blackhawk Plastic Surgery ("Defendants") was filed on December 31, 2025.

Plaintiff seeks to seal the entire index of exhibits, or, in the alternative specifically, Exhibits B, C, D, E, and G of the Index of Exhibits to the Declaration of Denise Billups-Slone in Support of Motion for Summary Judgment or in the Alternative Summary Adjudication because they contain Plaintiff's private medical records and information that is confidential and protected under applicable privacy laws, including but not limited to the Health Insurance Portability and Accountability Act (HIPAA) and California Constitution, Article I, Section 1. Plaintiff claims that the records were submitted solely to support the Defendants' motion and are not otherwise publicly available. Plaintiff asserts that given the highly personal nature of the medical information contained in the declaration, public disclosure would result in a significant invasion of the plaintiff's privacy and potential harm.

No timely opposition was filed by the Defendants.

Analyses

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession or abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410) (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings.

Applied here, the Court finds that Defendants' choice to not timely oppose this Motion to Seal is a deemed to be their consent to the granting of the motion. Accordingly, the Court finds good cause to grant this motion.

Ruling

1. Plaintiff's Motion to Seal is **granted**. The Court will execute and file the proposed order lodged on December 22, 2025, and specifically, the option that appears on page 2, lines 13-17 of the proposed order.
2. No appearance is required at the hearing of this Motion on April 22, 2026.

5. 9:00 AM CASE NUMBER: C23-03034
CASE NAME: VICTORIA PLUMLEE VS. JERRY MCLAUGHLIN, MD
***HEARING ON MOTION IN RE: ALLOW SERVICE OF DEF JERRY MCLAUGHLIN M.D. BY EMAIL**
FILED BY: PLUMLEE, VICTORIA
****TENTATIVE RULING:****

Plaintiff, Victoria Plumlee, moves for an order permitting email service of defendant, Jerry Mclaughlin, M.D. pursuant to Code of Civil Procedure, § 413.30 (a)(1).

That statute provides:

> If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.

(Code Civ. Proc., § 413.30 (a)(1).)

Plaintiff, in support of the motion, provides very little in terms of analysis as to how this statute applies to this case. Besides describing two failed mailing attempts, she does not describe efforts to serve the summons via other forms of permitted service. On this record, plaintiff fails to show "reasonable diligence" to effect service of the summons by another method "authorized under [Chapter 4 of Part 2, Title 5 of the Code of Civil Procedure (entitled "Service of Summons")]." As further pointed out in the opposition filed by Stanford Health Care, a website appearing to relate to defendant Dr. Mclaughlin's art identifies his home as being in Mexico. (Request for Judicial Notice in Support of Opposition, Ex. 3-4.)

Printouts submitted by plaintiff in support of the motion are from the same website, suggesting plaintiff is aware of the content of that website. (See Declaration of Robert G. Schock, Ex. F.) Notwithstanding plaintiff's awareness, she makes no attempt to show why the requirements for service of a defendant outside the United States should not be complied with. (See Code Civ. Proc., § 413.10 (c) [describing requirements for serving defendant in another country as being subject to "the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory," and further noting that the rules are "subject to" the provisions of the Hague Service

Convention.].)

On reply, plaintiff argues "Dr. McLaughlin's current physical address cannot be verified with the certainty required for formal international service," and that, as a result, the Hague Service Convention "does not apply." Plaintiff cites **no** authority for these assertions. She further submits a second declaration from counsel and a request for judicial notice with the reply papers. To the extent the evidence is new (some appears duplicative), plaintiff does not explain why it was not submitted with the initial motion papers. New arguments and evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) Even if considered, the evidence on reply does not change the result.

The motion is **denied.**

6. 9:00 AM CASE NUMBER: C24-00866
CASE NAME: DEVLIN BRASWELL VS. ALLUVIUM, INC.
***HEARING ON MOTION IN RE: APPROVING AND SETTLING THE RECEIVER'S FINAL REPORT AND ACCOUNTING**
FILED BY: SINGER, KEVIN
TENTATIVE RULING:

This Motion is **continued** to May 20, 2026 at 9:00 a.m. The Court has received and reviewed the (1) Objection to the Receiver's Final Accounting Report filed by Intervenor Patti O'Brien, which is supported by the Declaration of Patricia Coleman filed on April 8, 2026; and (2) Opposition filed by Creditor and Lien Claimant Global Assets Lien and Foreclosures, LLC filed on April 9, 2026. The Court requests that the Receiver prepare, file and serve replies to both of these filings at least five court days before the continued hearing. No further briefings are requested by the Court. No appearance is required on April 22, 2026.

7. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1
FILED BY:
TENTATIVE RULING:
The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. in Department 16. No appearance is required on April 22, 2026.

8. 9:00 AM CASE NUMBER: C24-01216
CASE NAME: SAM CHELLAKAN VS. JOHN SATHRI
***HEARING ON MOTION IN RE: EXPUNGE PLAINTIFF'S NOTICE OF PENDENCY OF ACTION**
FILED BY: SATHRI, JOHN E.
TENTATIVE RULING:

Before the Court is Defendant John E. Sathri's Motion to Expunge Plaintiff's Notice of Pendency of Action.

Factual Allegations and Background

This matter pertains to a purported agreement to purchase real property located at 30-32 Century Oaks, in San Ramon, California (the "Property"). In May 2019, Defendant informed Plaintiff that he was considering acquiring the Property to establish a church. (¶ 11.)

"In May 2019, Defendant orally proposed an investment to Plaintiff and a third unidentified individual wherein they would acquire and jointly own the Property. Under the proposal, Sathri would make a $628,000.00 investment for a 50% ownership interest in the Property, Chellakan would make a $348,889.00 investment for a 27.78% ownership interest in the Property, and the third individual would make a $279,111.00 investment for a 22.22% ownership interest in the Property." (¶ 12.)

It is alleged that Chellakan accepted Sathri's proposal. (¶ 13.) Thereafter, on May 13, 2019, Chellakan made an initial payment of $65,000.00 to Sathri for Chellakan's ownership interest in the Property. (¶ 14.) That same date, Sathri emailed Chellakan to confirm the receipt of the $65,000 "for investment in" the Property. (*Ibid.*) On May 15, 2019, Sathri put the parties' agreement for ownership of the Property in writing. (¶ 16.)

In late 2019, the third individual withdrew from the investment. (¶ 17.) At that time, Chellakan and Sathri agreed to amend their agreement so that Sathri would assume ownership of the third individual's 22.22% ownership interest in the Property and have a 72.22% interest in the Property and Chellakan would have a 27.8% interest in the Property. (¶ 17.)

Between May 2019 to July 2024, Plaintiff paid a total of $504,900 Sathri as consideration for Plaintiff's 27.78% ownership interest in the Property and for various expenses purportedly incurred by Sathri with respect to the Property. (¶ 15.) On November 17, 2021, a Grant Deed was recorded granting title to the Property to Sathri and his wife. (¶ 18.) Since December 2021, Plaintiff has made numerous oral and written requests to have his name added to the title – which has not occurred. (¶¶ 19-20.)

There are additional allegations relating to a promissory note, which are not relevant to this demurrer.

Legal Standard

"[A] lis pendens is recorded by someone asserting a real property claim, to give notice that a lawsuit has been filed which may, if that person prevails, affect title to or possession of the real property described in the notice." (*Federal Deposit Ins. Corp. v. Charlton* (1993) 17 Cal.App.4th 1066, 1069, citing CCP §§ 405.2, 405.4, 405.20.) Under Code Civ. Proc. § 405.30, at any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice.

"The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) 'the pleading on which the notice is based does not contain a real property claim' (Code Civ. Proc., § 405.31); (2) 'the claimant has not established by a preponderance of the evidence the probable validity of the real property claim' (Code Civ. Proc., § 405.32); or (3) 'adequate relief can be secured to the claimant by the giving of an undertaking' (Code Civ. Proc., § 405.33)." (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857.) Probable validity is met when the Plaintiff establishes their claim by a preponderance of the evidence. (Code Civ. Proc., § 405.32.)

"Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim." (*Kirkeby v. Superior Court* (2004)

33 Cal.4th 642, 647 citing Cal. Code Civ. Proc. § 405.30.)

The party prevailing on an expungement motion must be awarded reasonable attorney fees and costs incurred in making or opposing the motion unless the court finds the other party acted with "substantial justification" or that other circumstances make the imposition of attorney fees and costs "unjust." (Code Civ. Proc., § 405.38.)

Analysis

As noted above, a "lis pendens may be expunged if the action does not contain a real property claim ***or*** the claimant fails to establish the probable validity of the real property claim." (*Newell v. Superior Court* (2024) 107 Cal.App.5th 728, 735 quoting *De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1275 emphasis added.) Defendant argues both prongs of this analysis.

Real Property Claim

As to the first ground, "the court must expunge a lis pendens if the court finds the pleading on which the lis pendens is based does not contain a real property claim." (*Newell*, 107 Cal.App.5th at 735.) "In determining whether a pleading contains a real property claim, the court engages in 'a demurrer-like analysis.'" (*Ibid.* quoting *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647-48.) "Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim." (*Kirkeby* 33 Cal.4th at 648 citations omitted.) "Review 'involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer.'" (*Ibid.* citations omitted.)

Defendant argues that the "only cause of action in the Complaint that claims an interest in the Property is Plaintiff's first cause of action for breach of contract…." (Mtn at 2:18-21; 4:22-25.) He asserts that all the other claims "only seek monetary damages." (Mtn at 5:1-2.) Defendant notes that its demurrer to the breach of contract cause of action was sustained without leave to amend. As such, Defendant contends there are no 'real property claims' left in the SAC.

In opposition, Plaintiff argues that there are still three causes of action that assert a real property claim. First, the false promise (2nd CoA) and promissory estoppel (3rd CoA) claims are based on Defendant's false promise "that Chellakan would receive a 27.78% ownership interest in the Property in exchange for a $348,889.00 investment." (¶¶ 29, 36.) Likewise, the breach of fiduciary duty 4th (CoA) relates to Sathri's alleged undue influence over Chellakan allowing him to take Chellakan's money but "not granting Chellakan a promised 27.78% ownership interest in the Property…." (¶ 42.) Each of these causes of action seek, among other things, "imposition of a constructive trust and/or an equitable lien against the Property." (Prayer ¶ 5.)

Shoker v. Superior Court (2022) 81 Cal.App.5th 271, cited by both parties, is instructive. There, plaintiff's causes of action included claims that the defendant wrongfully acquired the property at issue via a conspiracy involving fraud and breaches of fiduciary duties. Plaintiffs alleged they were "entitled to a constructive trust returning those same real properties to them." (*Id.* at 282.) The Court of Appeal found that such claims fall "squarely within the plain language of the statute: it 'would, if meritorious, affect … title' to real property." (*Ibid.*)

Defendant argues that *Shoker* examined a long line of cases and determined that they held that "allegations of equitable remedies, even if colorable, will not support a lis pendens if, ultimately, those allegations act only as a collateral means to collect money." (*Id.* at 279-81.) While this is true, the *Shoker* court went on to examine the basis for that line of cases. It analyzed the approach set forth in *BGJ Associates v. Superior Court* (1999) 75 Cal.App.4th in detail, noting that the *BGJ* court ultimately found that 'plaintiffs who combine a real property claim with claims seeking money damages are not entitled to maintain a lis pendens on real property pending trial." (*Id.* at 280.) This position Defendant agrees with.

The *Shoker* court, however, continued by noting that "the *BGJ Associates* court's approach has since been discredited." (*Ibid.*) The *Shoker* court noted that the California Supreme Court in *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642 "implicitly discredit[ed] the approach employed by *BGJ Associates.*" (*Id.* at 281.) The *Kirkeby* court noted that the complaint included a fraudulent conveyance claim which, by definition, will affect title to or possession of real property.' (*Ibid.*) "The fact that plaintiffs asserted 27 total causes of action, most of which sought damages, made no difference." (*Ibid.*)

Ultimately, the *Kirkeby* court determined that section 405.31 "limits the court's review to the pleadings to determine whether the allegations state a real property claim as defined by section 405.4." (*Ibid.*) The *Kirkeby* court rejected the idea that "it should look past the fraudulent conveyance claim to discern the plaintiffs' overarching purpose." (*Ibid.*)

Here, Defendant argues that Plaintiff's claims do not assert a real property claim because he also seeks monetary damages. The California Supreme Court in "*Kirkeby* rejected the argument that a court may disregard a well-pleaded real property claim simply because the plaintiff also seeks money damages." (*Shoker*, supra, 81 Cal.App.5th at 282.) "Moreover, section 405.4 does not restrict a lis pendens to actions where a real property claimant *only* seeks title to, or possession of, specific real property." (*Ibid.*)

Plaintiff's fraud, promissory estoppel, and/or breach of fiduciary duty claims assert real property causes of action in that they are based on a promise to give Plaintiff an ownership interest in the Property and Plaintiff seeks a constructive trust and/or equitable lien against the Property, which would "affect [] title to, or the right to possession of, specific real property…." (Code Civ. Proc. § 405.4.)

On Reply, Defendant curiously argues that "Chellakan has not plead a cause of action for false promise, promissory estoppel, or breach of fiduciary duty, so even if those claims do involve a real property claim, they are not adequately plead in the SAC." (Reply 5:4-6.) This argument is in direct contradiction to this Court's earlier rulings on Defendant's demurrers to the FAC and SAC. With respect to the FAC, Defendant demurred to the false promise, promissory estoppel, and breach of fiduciary duty claims. The Court **overruled** the demurrer to the false promise and promissory estoppel claims. The Court sustained the demurrer to the breach of fiduciary duty claim, and granted Plaintiff leave to amend.

Plaintiff then filed the SAC which contains those same three causes of action (among others). Defendant did not demurrer to the false promise and promissory estoppel causes of action – thereby conceding they were adequately pled. Defendant did demurrer to the breach of fiduciary duty claim – which the Court **overruled**. Accordingly, Defendant's arguments are wholly without merit.

Likewise, Defendant's claim that those causes of action are basically a "breach of contract cause of action in disguise; and, this Court already dismissed the breach of contract cause of action," thereby apparently implying that those three causes of action are likewise not properly pled is baseless. The Court specifically addressed Defendant's arguments relating to each cause of action separately and found that the allegations do not support a breach of contract claim but ***do in fact*** support the causes of action for false promise, promissory estoppel, and breach of fiduciary duty. Those causes of action have separate legal elements – and the failure to properly allege one cause of action (e.g. breach of contract) does not in any way indicate that the others are not properly pled.

Defendant's outline and discussion of the Court's analysis regarding the breach of contract cause of action (Reply at 4:5-25) in no way impacts the separate analysis for the other causes of action. Also, Defendant's repeated contention that the "proposal (or promise) wasn't made to just Chellakan, it was made to Chellakan *and* a third individual, *and* it was rejected by the third individual," is not an accurate summary of the totality of the allegations of the SAC. The SAC makes clear that *after* the third individual rejected the proposal "Chellakan and Sathri agreed to amend their agreement so that Sathri would assume ownership of the third individual's 22.22% ownership interest in the Property and have a 72.22% interest in the Property and Chellakan would have a 27.78% interest in the Property." (¶ 17.) In other words, as this Court previously explained in its earlier rulings on Defendant's demurrers, after the proposed contract was abandoned, it is alleged there was a *separate agreement* between Plaintiff and Defendant that Plaintiff would obtain a 27.78% interest in the Property for his investment. This is what (in part) differentiates the breach of contract cause of action from the other causes of action.

Based on the above, the Court finds that the SAC that forms the basis of the lis pendens contains a real property claim.

Probability of Prevailing

"'If the claimant *does* plead a real property claim, but the claim pleaded has no evidentiary merit, the lis pendens must be expunged upon motion under [Code of Civil Procedure §] 405.32.' [Citation.]" (*La Jolla Group II v. Bruce* (2012) 211 Cal.App.4th 461, 475; see also *Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1011-1012.) Under section 405.32, "the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim." "Probable validity" means "it is more likely than not that the [plaintiff] will obtain a judgment against the defendant on the claim." (Code of Civil Procedure §405.3.)

To determine probable validity the court must look beyond the Plaintiff's pleadings and examine the factual merit of the claim – in effect, forecast the probable outcome at trial. In essence, the Code "requires a minitrial on the merits for making a probable validity finding, not a 'quasi demurrer-like analysis.'" (*De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1280.) "Nothing in the statute indicates the claimant is only required to make a prima facie case regarding the probable validity of the real property claim. Rather, the statute expressly states the standard is preponderance of the evidence." (*Ibid.* citing Cal. Code Civ. Proc. § 405.32.)

To support his claims, Plaintiff submits his declaration which reasserts that he and Defendant agreed that he would obtain a 27.78% ownership interest in the Property in exchange for his investment of capital. (Chellakan Decl. ¶ 5-6.) On May 13, 2019, Plaintiff make an initial payment of $65,000, which he describes as "for my ownership interest in the Property." (*Id.* ¶ 7.) On that same date, Defendant sent an email to Plaintiff stating: "This is confirm that you transferred 65 K today ***for investment in*** to 30-32 Century Oaks Ct, San Ramon Property. Thank you!" (*Id.* ¶ 8, Ex. 1 emphasis added.) Thereafter, Plaintiff continued to make payments to Defendant, totaling $504,900.00 "as consideration for [his] 27.78% ownership interest in the Property and for various expenses" related to the Property. (¶ 9.) Despite this, he has not received his ownership interest in the Property. (¶12-13.) Instead, a Grant Deed was recorded indicating the Property was owned by Defendant and his wife. (¶ 10.)

On Reply, Defendant again argues that Plaintiff has failed to allege a real property cause of action – which have already been addressed above. He then argues that the documents attached to the declaration are not authenticated and the "declaration does not even refer to or mention the documents at all." (Reply 6:4-5.) Again, this is factually inaccurate. In fact, Mr. Chellakan's declaration specifically cites to and quotes from the May 13, 2019, email and declares that a "true and correct copy of this email is attached hereto as Exhibit 1." (¶ 8.) As Mr. Chellakan is a party to the email his statements can and do authenticate the document. Defendant's 'objection' – to the extend statements in reply papers can be considered a proper objection – is without merit.

Defendant does not produce any evidence in reply to contradict Plaintiff's evidence. For example, there is no declaration from Defendant disputing any of the evidence provided by Plaintiff.

Plaintiff has presented evidence supporting his real property related claims. Defendant has failed to dispute any of that evidence and has failed to submit any contradictory evidence that would weigh against Plaintiff's evidence. Thus, based on the records before it on this motion, the Court finds that Plaintiff has met his burden to show that he is likely to prevail on his real property claim(s).

Undertaking

Defendant's whole argument regarding an undertaking is that if Plaintiff can show that the SAC "does state a real property claim and satisfy his burden of proof establishing the probable validity of such a claim, adequate relief can be secured by giving an undertaking." (Mtn at 6:24-27.) There is no analysis of the issue. Nor is there any evidence submitted upon which the Court can make any determination as to what amount would provide "adequate relief" to Plaintiff.

Attorney Fees

California Code of Civil Procedure section 405.38 provides:

> The court shall direct that the party prevailing on [a motion to expunge a lis pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

Plaintiff's counsel requests attorney fees in the amount of $4,712.50 based on their time spent reviewing the motion, preparing the opposition, opposing the *ex parte* related to this motion, and time expected to be spent reviewing the reply and preparing for/appearing at the hearing on this matter. (Wiener Decl. ¶ 2.) He details the time spent on each task and his billing rate. (*Ibid.*)

The Court finds that Plaintiff is the prevailing party. The Court also finds that Plaintiff's request for attorney's fees is reasonable. As such, the Court awards Plaintiff $4,712.50 in attorney's fees.

Conclusion

Defendant's motion to expunge the lis pendens is **denied**. As the prevailing party, Plaintiff is awarded $4,712.50 in attorneys' fees, payable within 30 days of entry of this order.

9. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
***HEARING ON MOTION FOR DISCOVERY PLAINTIFFS NOTICE OF MOTION AND MOTION TO COMPEL DEFENDANT UNITED PARCEL SERVICE, INC. TO PRODUCE CONTACT INFORMATION IN RESPONSE TO PLAINTIFFS INTERROGATORIES**
FILED BY: EVERS, BILLY
****TENTATIVE RULING:****
Summary

The following discovery motion is scheduled to be heard on by the Court on April 22, 2026 at 9:00 a.m. in Department 16:

1. Plaintiffs Billy Evers, Darien Robinson, and Tracy Turner ("Plaintiffs") Motion to Compel Defendant United Parcel Service, Inc. ("Defendant" or "UPS") to produce contact information in response to Plaintiffs' Interrogatories, filed on November 26, 2026.

The Court's register of events also demonstrate that Plaintiff has calendared hearings on the following discovery motions in Department 16 on September 16 and September 30, 2026.

2. Plaintiffs' Motion to Compel Defendant UPS Further Responses to Form Interrogatories-Employment and Special Interrogatories, filed on March 27, 2026.
3. Plaintiff's Motion to Compel Defendant UPS's Further Responses to Plaintiff's Request for Production of Documents, filed on March 27, 2026; and

The Court **vacates** all three (3) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling. No appearance is required at the hearing on April 22, 2026.

Background

This case involves allegations of race-based and sex/gender-based harassment, discrimination and retaliation against Plaintiffs Billy Evers, Darien Robinson and Tracy Turner (collectively "Plaintiffs") by Defendants while working at Defendant United Parcel Service, Inc.'s (hereinafter "Defendant UPS") facility in Oakley, California. Plaintiff has filed three discovery motions. There is also a pending motion to compel arbitration to be hearing on April 22, 2025.

Analyses

The Parties are admonished that this Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues of this complex employment case, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

Accordingly, the Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court also makes this finding on the grounds that there are currently three (3) pending discovery motions on calendar in the matter, scheduled for April 22, September 16 and September 30, 2026. These motions and opposition papers filed to date consists of 2,068 pages. Based on the number of motions and discovery in dispute, the Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of these discovery disputes. A hearing on multiple discovery motions would strain the resources of this Department, which already manages the complex litigation calendar and over 2,700 active cases.

After considering the moving and opposition papers submitted by Counsel to date, and analyzing the applicable statutory and decisional authorities, and reviewing the motion calendar for Department 16, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on April 22, September 16 and September 30, 2026, and any and all subsequently filed discovery motions. The hearing calendared for these discovery motions are vacated from Department 16's calendar and are referred for further hearing to the Discovery Referee.

2. By no later than May 1, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of **one** proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, May 4, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties filing and opposing any discovery motion. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment, along with a copy of this order.

5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for April 22, September 16 and September 30, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

10. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
HEARING IN RE: JOINDER TO MOTION TO COMPEL ARBITRATION
FILED BY: HERNANDEZ, GILBERTO
TENTATIVE RULING:*
Summary

This tentative ruling is related to the hearing on Defendant United Parcel Service, Inc's Motion to Compel Arbitration, Line 11.

Individual Defendants Gilberto Hernandez, Eric Hosier, Nicholas Resendes, and Rodney Humphreys's filed a Motion to Join to Defendant United Parcel Incorporated's Motion to Compel Arbitration on November 12, 2025. Plaintiffs Billy Evers, Darien Robinson, and Tracy Turner filed a statement of non-opposition to the joinder on March 6, 2026. As the joinder is not opposed, it is therefore **granted**.

11. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: UNITED PARCEL SERVICE, INC.
TENTATIVE RULING:*

Before the Court is a motion by defendant United Parcel Service, Inc. to compel arbitration as to plaintiff Tracy Turner, in which individual defendants Gilberto Hernandez, Eric Hosier, Nicholas Rezendes, and Rodney Humphreys have joined (*see* Line 10). For the reasons set forth, the motion to compel arbitration as to plaintiff Tracy Turner, in which the individual defendants join, is **denied**.

Background

This action is filed by plaintiffs Billy Evers, Darien Robinson, and Tracy Turner against United Parcel Service, Inc. ("UPS") and four individual defendants, Gilberto Hernandez, Eric Hosier, Nicholas Rezendes, and Rodney Humphreys, employed by UPS. Plaintiffs allege causes of action for harassment, employment discrimination, retaliation, and failure to prevent harassment, discrimination, and retaliation.

The complaint was filed on June 20, 2024. The complaint was served on UPS on July 8, 2024. UPS filed an answer to the complaint on August 6, 2024. UPS was represented by the firm Jones Day until its current counsel, Seyfarth Shaw LLP, filed a substitution of counsel on June 10, 2025.

A case management conference was held on September 19, 2025. UPS filed an amended CMC statement on September 16, 2025 in which it stated, admittedly for the first time in a filed pleading, that it had discovered that plaintiff Tracy Turner had signed an arbitration agreement with UPS dated June 3, 2022 and that UPS intended to file a motion to compel Mr. Turner to arbitrate his claims by September 26, 2025. A notice of ruling on the September 19, 2025 CMC further indicates the parties agreed at the hearing that Mr. Turner would not assert that UPS waived its right to compel arbitration by UPS participating in discovery after the motion to compel arbitration was filed. (Meer Decl. Exh. I

[Not. of Ruling filed 9/19/2025].)

UPS filed its motion to compel arbitration on September 29, 2025, as September 26, 2025 was a court holiday. The motion only seeks to compel Tracy Turner to arbitrate his claims. The individual defendants filed a joinder in the motion on November 12, 2025. Plaintiffs oppose the motion.

Procedures for Enforcement of Arbitration Agreement

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as waiver, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.) The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra,* 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra,* 15 Cal.4th at 972.)

Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, supra,* 8 Cal.5th at 125; Code Civ. Proc. § 1281 [written agreement to arbitrate "is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract"]; 9 U.S.C. § 2 [an arbitration agreement is "valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract . . . ."].)

Analysis

The Arbitration Agreement UPS contends exists between the company and Tracy Turner is attached as Exhibit A to the Ditmars Declaration in support of the motion. It is dated June 3, 2022 and bears the name of Tracy Turner on the signature line in electronic characters. (Ditmars Decl. Exh. A.) Turner disputes that he signed the Arbitration Agreement.

Turner, however, argues that even if the Court were to find the Arbitration Agreement is genuine and was executed by him electronically, UPS has waived the right to compel him to arbitrate his claims by UPS's participation in litigation in the case for over a year while UPS and its counsel were in possession of the Arbitration Agreement and without raising arbitration as a defense.

A. Legal Standards for Proof of Waiver of Right to Arbitrate

In *Quach, supra,* 16 Cal.5th 562, the Court addressed the standard for showing a waiver of the right to arbitrate. The Court held the standard for demonstrating waiver in the arbitration context is the same standard whether the FAA or the CAA applies and is governed by "generally applicable state law contract principles." (*Id.* at 572, 576,) The Court explained, "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Id.* at 584.) The "clear and convincing evidence" standard of proof requires a showing that it is "highly probable" that the fact is true. (*Id.* at 584.)

The Court addressed how waiver may be proven. The Court explained that "[t]he waiving party's knowledge of the right may be 'actual <u>or constructive</u>.' [Citation omitted.] Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or <u>of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it</u>. [Citation omitted.]" (*Id.* at 584 [emphasis added].) The exclusive focus of the determination of waiver is the waiving party's conduct; "neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant. [Citation omitted.]" (*Id.* at 585.) The Court also warned against courts conflating under the general catch-all term "waiver" distinct legal defenses such as forfeiture or estoppel. (*Id.* at 583-584.)

"Generally, constructive knowledge, 'means knowledge "that one using reasonable care or diligence should have, and therefore is attributed by law to a given person' [citation][, and] encompasses a variety of mental states, ranging from one who is deliberately indifferent in the face of an unjustifiably high risk of harm [citation] to one who merely should know of a dangerous condition [citation].)' [Citations omitted.] The existence of constructive knowledge is assessed by reference to an objective 'reasonable person' measure, 'since there is no other way to measure it.' [Citation omitted.]" (*Paslay v. State Farm General Ins. Co.* (2016) 248 Cal. App. 4th 639, 657-658 [addressing concept in the context of elder abuse statute by explaining the phrase "knew or should have known" "ordinarily conveys a requirement for actual or constructive knowledge. [Citation omitted.]"].)

B. <u>UPS Had Constructive Knowledge of the Turner Arbitration Agreement</u>

Mr. Meer explains the process UPS uses to collect relevant documents and transmit to counsel the electronic files relevant to a case when an action is filed against it. (Meer Decl. ¶¶ 5, 7, 8.) He states that UPS creates an in-house team responsible for each litigation matter, and that the in-house team is "deemed to have knowledge of the information needed to defend a given lawsuit." (Meer Decl. ¶ 5.) UPS sent its relevant electronic files to the Jones Day firm at the outset of the case, which in turn transmitted the electronic files of documents to Seyfarth when it was substituted as counsel for UPS. (Meer Decl. ¶¶ 5, 7, 8, 9, 22-24.) He states Seyfarth began producing documents to Plaintiffs' counsel in tranches starting June 13, 2025. (Meer Decl. ¶ 23.) A Seyfarth associated found the Tracy Turner arbitration agreement on August 7, 2025, and Seyfarth produced the document on August 8, 2025, within roughly seven weeks after it was substituted into the case. (Meer Decl. ¶¶ 23-24 and Exh. H.)

UPS presents evidence in the Harris and Ditmars Declarations that in 2022, the form of the Arbitration Agreement was presented to job applicants who were not subject to a collective bargaining agreement which would have its own arbitration agreement. (Harris Decl. ¶¶ 4, 5 [but stating the copy of the arbitration agreement attached as Exhibit A was presented to "all applicants in California in June 2022"]; Ditmars Decl. ¶ 12.) Harris declares that UPS protocol would be that an arbitration agreement signed by an employee be placed in the employee's personnel file. (Harris Decl. ¶ 15.) He states if no such agreement was in the personnel file, then UPS would assume there was no arbitration agreement. (Harris Decl. ¶ 16.) (*See also* Meer Decl. ¶ 13 [documents sent by Harris to Turner in response to his request for his personnel file did not include the Arbitration Agreement].)

UPS's representative Ditmars testified at her deposition that in 2022, when Turner made his employment application, people seeking employment with UPS applied through upsjobs.com, an online portal operated at the time by a third party vendor (Equifax), and that in 2023 and 2024, UPS worked with its vendor who maintained the Automated Employment portal for UPS to identify documents from that portal that UPS wanted to keep and to move them to a UPS storage system to maintain the records. (Suppl. Meer Decl. Exh. M [Ditmars DT.) The fact that there was a transition in the online employment application portal a year after Turner's employment began coupled with UPS's inability to locate an arbitration agreement in his personnel file, strongly suggest a further search outside the personnel file was warranted.

The Ditmars deposition testimony submitted with UPS's reply further supports that UPS had an obligation to search its records for an arbitration agreement rather than simply relying on the absence of the document in the personnel file alone. Ditmars testified clearly that "the job applicant on the Automated Employment system could not proceed with an application to work at UPS in June 2022 without agreement to this arbitration agreement." (Suppl. Meer Decl. Exh. M [Ditmars DT p. 140, ll. 14-20, p. 241, ll. 6-14].) The Automated Employment system was the system in effect when Turner applied for his job in June 2022. All UPS representatives insist that Turner's application could only be made in electronic form through that system, and that the arbitration agreement form was presented to all California applicants in June 2022 when Turner made his application.

UPS does not contest that the Arbitration Agreement it contends Turner signed was in its possession at all times, that it was turned over to the Jones Day firm at the inception of the case, and that UPS knew or should have known an arbitration agreement had to have been signed by Turner <u>because he could not proceed with the electronic application process without signing it</u>. (Suppl. Meer Decl. Exh. M [Ditmars DT p. 140, ll. 14-20, p. 241, ll. 6-14].) UPS offers no explanation for its failure to search anywhere other than the personnel file to try to find the arbitration agreement that Turner <u>must have signed</u> in order to complete his employment application. UPS argues knowing the "content" of the Arbitration Agreement is "not the same as having located a signed copy." (Reply, p. 5, ll. 14-15.) But UPS did not just know the content of the document; UPS knew that Turner could not have completed an employment application without signing the Arbitration Agreement. As Ditmars testified, he " 'could not have moved forward unless he answered every question that was required, clicked every box that was required, and landed on that arbitration step and completed it.' " (Reply, p. 3, ll. 10-17, citing Ditmars DT.)

Notably, there is no declaration by counsel from the Jones Day firm which represented UPS presumably shortly after UPS was served with the complaint on July 8, 2024 until June 9, 2025 and which was given the electronic files described in the Meer Declaration that were later turned over by Jones Day to Seyfarth when it took over UPS's representation. Current counsel Meer describes his experience representing UPS in other matters and asserts UPS would have raised the affirmative defense of arbitration in its answer if it knew of the Arbitration Agreement, so Meer concludes UPS corporate representatives and Jones Day did not know about that agreement. (Meer Decl. ¶ 15.) The evidence indicates that UPS made a search of its records to gather documents relevant to the disputes which it turned over to Jones Day, which included the Turner Arbitration Agreement. There is no evidence that UPS or its counsel at the time made any search for an arbitration agreement in the UPS electronic files turned over to UPS, other than in the electronic personnel file, even though (a) the form of arbitration agreement was given to all applicants in California in June 2022 as part of the job application process, (b) Turner's employment application could not have been completed without him signing the Arbitration Agreement, and (c) UPS knew that it had shifted its Automated Employment portal between June 2023 and June 2024 and was saving and storing documents from that portal, the portal by which Turner made his application. (*See* Harris Decl. ¶¶ 4, 5; Ditmars Decl. ¶ 12 and Ditmars DT cited above.)

Based on the totality of the evidence before the Court, the facts and circumstances collectively support a finding that it is highly probable that UPS knew that an arbitration agreement existed covering Turner. Indeed, UPS could have made a motion to compel arbitration with all the facts and evidence it has presented in this motion based on the form of arbitration agreement Harris declares all unrepresented California applicants received with the online employment application and the Ditmars testimony that it was in effect impossible for a completed employment application to be made online without the applicant having first signed the arbitration agreement electronically, such that the existence of a fully completed online application supports that the Arbitration Agreement was also agreed to and electronically signed by Turner. (Cal. R. Ct. 3.1330; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [explaining moving party's initial burden].) Instead, the facts indicate UPS chose to litigate immediately and immediately propound written discovery to Turner.

C. **Other Facts Evidencing Waiver Based on Conduct Inconsistent with Pursuit of Arbitration**

UPS through the Jones Day firm filed an answer to the complaint on August 6, 2024 which did not include an affirmative defense asserting the existence of any arbitration agreement or challenging the Court's jurisdiction to determine the claims based on any arbitration agreement. (Meer Decl. Exh. C [8/6/2024 UPS Ans.].) UPS did not move to amend its answer (ever) or to compel Turner to arbitrate until September 2025, thirteen months after UPS first appeared. (*See Guess?, Inc. v. Superior Court* (2000) 79 Cal. App. 4th 553, 558 ["At a minimum, the failure to plead arbitration as an affirmative defense is an act inconsistent with the later assertion of a right to arbitrate."].) UPS's position that it will move to amend if the Court finds UPS has not waived its right to compel arbitration is not persuasive support for UPS not being aware of its right to arbitrate and engaging in conduct inconsistent with its intent to exercise that right.

Piplack v. In-N-Out Burgers (2023) 88 Cal.App.5th 1281 relied on by UPS is distinguishable. That case involved a PAGA action, and the defendant did not allege arbitration as an affirmative defense because at the time it filed its answer, binding California Supreme Court authority precluded arbitration of any PAGA claims. (*Id*. at 1289-1290.) The Court does not find *Khalatian v. Prime Time Shuttle, Inc.* (2015) 237 Cal.App.4th 651 and its statement that "[a]nswering the complaint does not result in waiver" persuasive, as the Court's analysis of waiver in that case was framed by the now-rejected *St. Agnes* analysis that required proof of prejudice to the party opposing arbitration. (*Id*. at 654 ["Plaintiff cannot demonstrate prejudice from the delay, which is determinative. [Citation omitted.]"], 662, 663 ["Because plaintiff demonstrated no prejudice from defendants' delay in moving to compel arbitration, the [trial] court erred in finding waiver."].)

UPS also engaged in extensive discovery. (Durkin Decl. ¶ 10, and Exh. 9.) UPS did not merely respond to Plaintiff's discovery but immediately on answering served extensive written discovery requests, including interrogatories and requests for production, on Mr. Turner in 2024 to which Mr. Turner responded. (Durkin Decl. ¶ 10, and Exh. 9.) UPS served its discovery the same day it answered the complaint, apparently without any attempt to review the files UPS had gathered as relevant to the case or to perform a search of those files for an arbitration agreement despite the UPS policies and practical procedures that Ditmars has testified meant Turner <u>had to have signed an arbitration agreement to complete his employment application in June 2022</u>.

UPS appeared at three case management conferences between December 19, 2024 and April 14, 2025 and filed related CMC statements. UPS never asserted even the possible existence of an arbitration agreement or its willingness to participate in binding arbitration. (*See* Meer Decl. Exhs. D [UPS CMC Stmt filed 12/13/2024, indication, among other things, UPS was reserving the right to address bifurcation and expected to file a motion for summary judgment or summary adjudication], E [UPS CMC Stmt filed dated 1/13/2025], and F [Jt. CMC Stmt filed 4/9/2025].) It never attempted to assert the possibility an arbitration agreement existed and reserving its right to enforce it if found, even though (a) Meer attests UPS had a policy of enforcing arbitration agreements (Meer Decl. ¶¶ 15, 19), (b) UPS presented an arbitration agreement to each job applicant in California in June 2022, and (c) the Automated Employment application process required applicants to sign the arbitration agreement because their employment application could not proceed without execution of the arbitration agreement. (Meer Decl. Exhs. D, E, and F.) These facts are consistent with UPS electing not to pursue arbitration of Turner's claims despite the fact that it knew Turner had to have signed an arbitration agreement and could not have completed the application and employment process without having done so. (*See* Harris Decl. ¶¶ 4, 5; Ditmars Decl. ¶ 12 and Ditmars DT cited above.)

UPS turned over volumes of electronic records to the Jones Day firm identified and gathered by the UPS in-house team as relevant to the plaintiffs and their claims, as Meer explains. (Meer Decl. ¶¶ 7, 8, 20-24.) There is no evidence that UPS or Jones Day even made any attempt to search of the records UPS turned over to locate an arbitration agreement in the face of UPS having job application procedures that meant Turner applying for a job in June 2022 <u>must have electronically signed an arbitration agreement</u> because his electronic employment application could not proceed otherwise.

UPS did not move to compel arbitration for another seven weeks after it located the Arbitration Agreement. To this day, UPS has not made any attempt to amend its answer to the complaint to allege the Arbitration Agreement as an affirmative defense. The Court in *Quach* found a delay of 13 months before the defendant moved to compel arbitration one of the factors supporting its finding of waiver, in addition to the fact that the defendant propounded discovery requests to the plaintiff and failed to check any box in the CMC form indicating the defendant was willing to participate in arbitration. (*Quach, supra,* 16 Cal.5th at 586-587.) The Court rejected the argument that there was no waiver because the discovery the defendant obtained was information it could have gained in arbitration. (*Id.* at 587.)

While in *Quach*, the defendant had a copy of the plaintiff's signature page on the arbitration agreement, the defendant claimed that it had been unable to locate the <u>complete</u> arbitration agreement until shortly before it moved to compel arbitration 13 months later. (*Id.* at 571, 586.) The Court in *Quach* was skeptical of the defendant's not having located the arbitration agreement in part for the same reasons the Court in this case is skeptical that UPS was not aware of the Arbitration Agreement; the human resources director in that case, like Ditmars and Harris here, provided evidence that during the time frame in which the plaintiff in Quach was employed, all employees were required to sign a binding arbitration agreement for employment-related disputes. (*Id.* at 586.) (See also *Campbell v. Sunshine Behavioral Health, LLC* (2024) 105 Cal.App.5th 419, 429-430.) As in *Campbell*, there is no evidence that the Arbitration Agreement could not have been accessed by a search of UPS's electronic files turned over to the Jones Day firm; the fact that Seyfarth was able to locate the document in a document review seven weeks after it became counsel of records indicates the document was accessible as part of the electronic records UPS gathered and turned over to counsel.

D. <u>Conclusion: UPS Has Waived the Right to Compel Arbitration of Turner's Claims</u>

The Court finds that there is clear and convincing evidence of waiver on this record. The Court therefore **denies** the motion to compel arbitration of Turner's claims against UPS and the individual defendants.

12. 9:00 AM CASE NUMBER: C24-01961
CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD
***HEARING ON MOTION IN RE: INTENTION TO MOVE TO SET ASIDE AND VACATE JUDGMENT FILED BY NATALIA HOWARD**
FILED BY:
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Defendant Natalia Howard’s Motion to Set Aside Judgment and Motion for New Trial is **<u>denied</u>** as set forth herein.

<u>Background</u>

This is a landlord-tenant case where Plaintiff William Dedman served a three-day notice to pay rent or quit to Defendants pursuant to Code of Civil Procedure §§ (CCP) 1161(2) and 1161 (3). In lieu of pursuing an unlawful detainer action, Plaintiff William Dedman (“Plaintiff”) entered into a stipulated agreement that allowed Defendants Brian Howard and Natalya Howard (“Defendant”) to vacate the subject property on or before July 15, 2022 with certain conditions, which Plaintiff, at trial, alleged were violated. A default was entered against Defendant Brian Howard, who is Natalia Howard’s former spouse. Defendant Natalya Howard chose to represent herself in all proceedings, including the jury trial.

The case was set for a court trial on January 23, 2026. On that date, Defendant demanded a trial by jury, even though she previously failed to post jury fees. The Court granted relief from her waiver of her right to a jury trial over Plaintiffs objection. A jury trial was set for January 26, 2026. Defendant filed a Motion for Leave to File a Cross-Complaint on December 17, 2025 which was set for hearing on May 20, 2026. However, Defendant did not seek ex parte relief for an order advancing that hearing or to continue the trial date until the first day of trial. Instead, Defendant requested a continuance of the trial on the morning of the scheduled jury trial January 26, 2026 as the jury venire was assembling. Plaintiff opposed this request because Plaintiff resides in Romania and traveled to Contra Costa County for a trial set for January 23, 2026. The Court found good cause to deny the continuance and confirmed the trial date and proceeded with the jury trial that was demanded by Defendant over her objection.

Both Parties selected a jury, presented opening statements, presented and cross-examined witnesses, presented evidence, and made closing arguments. Plaintiff was assisted by a Russian language interpreter throughout her jury trial. Plaintiff requested reporting through a fee waiver. The trial was recorded by certified court reporters.

After a full jury trial on the merits of this case, on February 2, 2026, the jury deliberated and returned a verdict against Defendant Natalya Howard and for Plaintiff William Dedman in the amount of $28,762.50. The jury found that Plaintiff met his burden of proving, by a preponderance of evidence, that the subject premises were damaged by Defendant's actions. The jury further found that Defendant had improperly taken appliances from the subject premises. Judgment on the verdict was entered against Nataliya Howard on February 20, 2026. The judgment against Brian Howard was entered by default. A Notice of Entry of Judgment was served by mail on Defendant Nataliya Howard on February 26, 2026. Defendant filed a Notice of Intent to file this instant motion for a new trial and also moved to set-aside and vacate the judgment.

Defendant now seeks a new trial on the following grounds: (1) Irregularity in the proceedings claiming that the Court denied Defendant from arguing Civ. Code § 1950.5 relating to deposits during her case; (2) Error in the law claiming that the Court preventing Defendant from arguing Civ. Code § 1950.5 relating to security deposits and move-out inspections; (3) Verdict or Decision is against the law; (4) Irregularity of the proceedings or abuse of discretion in denying Defendant Motion for Leave to File to file a cross-complaint; (5) Accident or surprise; (6) Misconduct in the proceedings by Plaintiff regarding an accounting for rent relief program; (7) Error in the law in the jury's handling of the special verdict form. Defendant's motion asserts these grounds in a superficial manner, but does not support her arguments and analyses with evidence from the trial transcript, or a reference to the exhibits admitted into evidence. In other words, Defendant's motion is not supported by an analyses of the facts, any actual trial testimony, or proof of evidentiary errors which form the basis of her claims.

Plaintiff opposition asserts the following arguments: (1) The court properly excluded Defendant's non-disclosed witness, Kris Narayan, who was not offered for rebuttal. Narayan's proffered testimony relates to confidential settlement discussions pertaining to the settlement agreement entered by the parties prior to the trial; (2) The court properly ruled that evidence was authenticated and properly admitted against defendant; (3) Plaintiff presented uncontroverted evidence that Defendant improperly took appliances belonging to Plaintiff when she vacated the subject premises; (4) The Court properly allowed Defendant to cross-examine Plaintiff at the time trial; (5) Defendant's reliance on the security deposit rules of Cal. Code of Civ. Proc § 1950.5 is misplaced, as these proceedings were based on a termination of tenancy due to Defendant's failure to pay rent; (6) The Court properly excluded reference to a cross-complaint that was not filed by Defendant.

Analyses

Defendant is Self-Represented and is subject to the Rules that Apply to All Litigants

The Court is aware that Defendant is proceeding without an attorney in her lawsuit. The Court has admonished Defendant several times that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also R*appleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assura*nce (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Defendant appeared to be knowledgeable about the law in her briefs and pre-trial proceedings. Although she insisted on exercising her right to a jury trial and in representing herself, this Court notes that Defendant, like most self-represented litigants, did not have requisite litigation experience to defend herself at the jury trial. She did not effectively address the evidence admitted against her, nor did she cross-examine witnesses effectively.

Grounds for New Trial

An aggrieved party may make a motion for a new trial after a trail and decision by a jury. Cal. Code of Civ. Proc. § 656, 657 and 661. A court may grant a new trial only on statutory grounds that materially affect the substantial rights of the moving party.

A motion for a new trial is a new and independent proceeding, in which the trial court can reweigh the evidence and reevaluate the credibility of the witnesses. Akin to sitting as the 13th juror, a trial court is authorized to question the credibility of witnesses and draw inferences from the evidence contrary to the inferences drawn by the jury. The court may grant a new trial based only on statutory grounds "materially affecting the substantial rights of" the aggrieved party. *Ajaxo, Inc. v. E*Trade Fin.*

Corp. (2020) 48 Cal.App.5th 129, 187; *Oakland Raiders v. National Football League* (2007) 41 Cal.4th 624, 633. Cal. Code Civ. Proc. § 657 states, "The right to a new trial is purely statutory, and a motion for a new trial can be granted only on one of the grounds enumerated in the statute." *Fomco, Inc. v. Joe Maggio, Inc.* (1961) 55 Cal. 2d 162, 166. "The procedural steps for making and determining such a motion are mandatory and must be strictly followed." *Linhart v. Nelson* (1976) 18 Cal. 3d 641, 644. A motion for a new trial calls for reexamination of an issue of fact or law in the same court after a trial and decision by a jury, court, or referee. See Cal. Code Civ. Proc. §§ 656, 657.

"A new trial motion allows a judge to disbelieve witnesses, reweigh evidence and draw reasonable inferences contrary to that of the jury, and still, on appeal, retain a presumption of correctness that will be disturbed only upon a showing of manifest and unmistakable abuse." *Fountain Valley Chateau Blanc Homeowner's Ass'n v. Department of Veterans Affairs* (1998) 67 Cal. App. 4th 743, 751-752. In weighing and evaluating the evidence, the court is a trier-of-fact and is not bound by the jury's factual resolutions. The court may grant a new trial even though there is sufficient evidence to sustain the jury's verdict on appeal provided that the court determines that the weight of the evidence is against the verdict. *See Candido v. Huitt* (1984) 151 Cal. App. 3d 918, 923. "A new trial motion allows a judge … draw reasonable inferences contrary to that of the jury, and still, on appeal, retain a presumption of correctness that will be disturbed only upon a showing of manifest and unmistakable abuse." *Fountain Valley Chateau Blanc Homeowner's Ass'n v. Department of Veterans Affairs* (1998) 67 Cal. App. 4th 743, 751-752

The grounds relevant to this motion are set forth in Cal. Code of Civ. Proc. § 657, which provides, that a new trial may be granted if the record demonstrates (1) An irregularity in the proceedings (2) Misconduct of the jury; (3) Accident or surprise; (4) Excessive or inadequate damages; (5) Erroneous instructions to the jury; (6) Newly discovered evidence; (7) Insufficiency of the evidence to justify the verdict; or (8) Verdict is against the law.

In evaluating the moving papers submitted by Defendant, the opposition brief submitted by Plaintiff, and carefully reviewing the minutes of proceedings of the trial, the rulings on Plaintiff's motions in limine, the register of actions, the exhibits admitted into evidence, and the verdicts reached by the jury, this Court struggles to find any independent evidence from which it can draw inferences of irregularity, jury misconduct, accident, insufficiency of evidence, or that there was an illegal verdict.

Defendant did not order a transcript of the trial proceedings and did not cite, in any detail, to instances in the trial testimony where there is evidence that supports any of the grounds set forth in her motion. Defendant's Memorandum of Points and Authorities presents a superficial summary of grounds which she claims supports a motion for new trial. However, the declaration of Defendant and the grounds upon which she seeks new trial do contain any detailed analyses, citations to evidence, or a reference to trial exhibits improperly admitted from which this court could ascertain any error in the proceedings. While Defendant cites to evidence admitted by the Court, she fails to disclose that any evidentiary objections were considered by the Court and appropriate rulings were rendered prior to the admission of evidence. In short, Defendant's summary motion fails to sufficiently address the grounds upon which this court may grant a new trial.

After exercising its independent judgment in weighing the evidence presented at trial, and sitting as the hypothetical "13th juror," this Court concludes that the jury's findings are supported by credible and competent evidence. In weighing any evidence that was presented to the jury independently, and reviewing the trial record, the Court finds that there was sufficient evidence to support Plaintiff's verdict against the Defendant in this case. Accordingly, the Court finds that reasonable inferences drawn from the evidence establish that there was no insufficiency of the evidence which leads this Court to conclude that the jury should have come to a different decision.

After reviewing the evidence in light of the foregoing statutory and decisional authority, the Court finds good cause to deny Defendant's Motion for New Trial

Ruling

Defendant Natalia Howard's Motion for New Trial is **denied**. Plaintiff is ordered to prepare and e-file a proposed order attaching a copy of the tentative ruling no later than five (5) days from the date of the hearing.

13. 9:00 AM CASE NUMBER: C24-02919
CASE NAME: NICOLE LITTLE VS. JOHN MUIR HEALTH
HEARING ON SUMMARY MOTION CONTD FROM 3/11/26 PER TR
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by John Muir Health ("defendant" or John Muir"). The motion is **granted**, as discussed below. John Muir shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On December 25, 2023, plaintiff was injured when she tripped. Plaintiff's shift at John Muir had ended and she was walking to her car. Plaintiff was employed as a travel nurse at John Muir's facility through a contract between John Muir and nurse staffing agency, Cross County Healthcare ("Cross Country").

Plaintiff's complaint alleges two causes of action against John Muir, negligence and premises liability, based on an injury she suffered when she tripped while walking to her car after her shift ended. Plaintiff was employed as a travel nurse at John Muir's facility through a contract between John Muir and nurse staffing agency, Cross County Healthcare ("Cross Country"). (SSUMF, Fact. Nos. 1-2, and plaintiff's response.)

The contract between John Muir and Cross Country, pursuant to which plaintiff was working, provided that John Muir would retain "administrative and professional responsibility" for services rendered to patients, and further, that John Muir would be responsible for management and control functions related to the provision of service to patients. (SSUMF, Fact. No. 3, and plaintiff's response.) Plaintiff argues this language is not determinative because John Muir "did not control plaintiff's functions or duties," citing facts that suggest plaintiff had a significant amount of experience and autonomy in delivering care. (See Additional Material Fact Nos. 1-7, 16-18.) Plaintiff points out that the contract between John Muir and Cross Country explicitly excluded any employment relationship between John Muir and the professionals working on behalf of Cross Country. (Additional Material

Fact No. 19.)

Parties dispute whether the parties knew how long plaintiff would be employed when she first began working at John Muir, or whether her term was for an indefinite period. (SSUMF, Fact. No. 4, and plaintiff's response.) John Muir asserts that it retained the authority to terminate plaintiff's assignment with or without cause. (SSUMF, Fact. No. 5.) While plaintiff purports to dispute this fact, her additional facts do not demonstrate otherwise. (Additional Material Fact Nos. 25-28.) John Muir was responsible for setting plaintiff's work schedule while she worked at its Walnut Creek facility. (SSUMF, Fact. No. 6, and plaintiff's response.)

During plaintiff's tenure at John Muir, John Muir contends that it retained, and exercised in fact, the exclusive right to supervise, manage and control plaintiff's day-to-day work activities and job duties. (SSUMF, Fact. No. 7.) Plaintiff purports to dispute this fact by presenting her own testimony that she did not consent to any special employment relationship with John Muir, by emphasizing her own qualifications and skill, and citing the contract provisions disclaiming an employment relationship. (See Additional Material Fact Nos. 1-6, 16-19.)

To the extent that Plaintiff used medical devices and equipment while working at the Walnut Creek Medical Center, those medical devices and equipment were supplied exclusively by JMH. (SSUMF, Fact. No. 8, and plaintiff's response.)

As required by its contract with John Muir, Cross Country maintained workers' compensation coverage. A workers' compensation claim was, in fact, filed on behalf of plaintiff with respect to her injuries at issue here. (See SSUMF, Fact. Nos. 9-10, and plaintiff's response.) Further, in the workers' compensation proceeding, plaintiff stipulated that her injury occurred within the course and scope of her employment. (SSUMF, Fact. No. 11, and plaintiff's response.)

II. Motion and Opposition

John Muir moves for summary judgment on the grounds that plaintiff's claims are barred by the workers' compensation exclusivity rule of Labor Code section 3600 and the "borrowed servant/dual employee" doctrine. John Muir argues it was plaintiff's "special employer" because plaintiff was a general employee of Cross Country, which provided her with workers' compensation benefits pursuant to the contract with John Muir. John Muir employee, Denise Johnson, attaches the contract between John Muir and Cross Country. The motion is also supported by a separate statement asserting eleven facts it maintains are undisputed.

Plaintiff opposes the motion, arguing that there was no employment relationship herself and between John Muir. Plaintiff cites her level of experience and the terms of the agreement between Cross Country and John Muir. She also argues John Muir did not have the right to terminate her employment relationship with Cross Country. In support of her opposition, plaintiff submits her own declaration and a declaration by counsel which attaches excerpts from the deposition of the "enterprise chief nurse executive" for Cross Country Healthcare, Henry Earl Drummond.

SSUMF, Fact Nos. 3, 5, and 7 are identified as "disputed" with citations to plaintiffs own additional facts. This is not in compliance with the summary judgment statute or California Rules of Court, which require citations to evidence. (Code Civ. Proc., § 437c (b)(3); Cal. Rules of Court, Rule 3.1350 (f)(2).) This approach obfuscates whether there is actually a dispute of fact (contrary to the policy behind the separate statement requirement) and plaintiff's counsel is cautioned to follow these rules in the future. Having reviewed the additional facts and evidence, the Court finds these facts (3, 5, and 7) are not genuinely disputed. Despite a purported dispute with respect to Fact No. 4 (whether parties contemplated a specific end date with respect to plaintiff's tenure at John Muir), the Court does not view the dispute as material to the outcome here.

In its reply, John Muir denies that plaintiff has shown any facts that amount to a triable dispute. It further refutes one of plaintiff's key authorities (*InfiNet Marketing Services, Inc. v. American Motorist Ins. Co.* (2007) 150 Cal.App.4th 168) and argues the contractual terms between itself and Cross Country are not dispositive as to John Muir's employment relationship with plaintiff.

III. Evidentiary Matters

In support of its motion. defendant requests judicial notice of documents from plaintiff's ongoing case with the Workers' Compensation Appeals Board (Case No. ADJ18766243). Plaintiff does not oppose the request, which is **granted**.

IV. Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c (c).) A defendant's burden consists of showing one or more elements of plaintiff's cause of action cannot be established, or that there is a complete defense to a cause of action. (Code Civ. Proc. §437c, subd. (o),(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense. (*Ibid*.)

The Court's obligation on a motion for summary judgment is to "consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c(c).)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party's evidence and liberally construe the opposing party's evidence (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass'n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

V. Discussion

A. Step 1: Issues as Framed by the Pleadings

Here, plaintiff's complaint seeks to recover against John Muir for negligence and premises liability. John Muir's answer denies all material allegations and sets forth, as the Twenty-Fifth Affirmative Defense, the California's Workers' Compensation Act. The defense explicitly states that "plaintiff and defendant were in a relationship such that plaintiff was subject to the exclusive remedy of workers' compensation, barring this civil action." The issue before the Court is properly framed by the pleadings here.

B. Step 2: Initial Burden

Labor Code sections 3600, 3601, and 3602 collectively generally provide that an employee's exclusive remedy for an injury that occurs in the course and scope of the employment is workers compensation benefits ("exclusivity rule") and that the exclusivity rule applies in "dual" employment circumstances, where the employee is considered an employee of more than one employer. California case law also supports the application of the exclusivity rule in dual employment situations, where the employee is a "general" employee of the lending employer and a "special" employee of the borrowing employer. (See, e.g., *Kowalski v. Shell Oil Co.* (1979) 23 Cal.3d 168, 174; *Marsh v. Tilley Steel Co., supra*, 26 Cal.3d at 492; see also *Santa Cruz Poultry v. Superior Court* (1987) 194 Cal.App.3d 575, 578.)

Labor Code, § 3602 (d)(1) explicitly states that, for purposes of workers' compensation, an employer that is borrowing employees from another employer pursuant to contract is considered to have obtained workers' compensation coverage so long as the lending employer is required to obtain coverage by the contract, and does in fact obtain the coverage for those employees. In such cases, the employer who has complied "shall not be subject to […] tort liability in the event of employee injury […]." (Labor Code, § 3602 (d)(2).)

Said another way, plaintiff only has a right to tort damages from John Muir if she is *not* an "employee" of John Muir. (*Caso v. Nimrod Productions, Inc*. (2008) 163 Cal.App.4th 881, 888 [citing Lab. Code § 3852 and *Marsh v. Tilley Steel Co*. (1980) 26 Cal.3d 486, 495].)

John Muir, in its motion, takes the position that plaintiff was its employee. The legal standard cited and discussed in John Muir's initial papers was established by case law, not by statute. In 2020, prior to plaintiff's stint at John Muir, Labor Code section 2775 took effect. (See *Parada v. East Coast Transport Inc.* (2021) 62 Cal.App.5th 692, 699, fn. 2].)

Labor Code, section 2775, subdivision (b)(1), describes the test for whether plaintiff was an employee of John Muir:

> For purposes of this code […] a person providing labor or services for remuneration shall be considered an employee rather than an independent contractor unless the hiring entity demonstrates that all of the following conditions are satisfied:
>
> > (A) The person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact.
> >
> > (B) The person performs work that is outside the usual course of the hiring entity's business.
> >
> > (C) The person is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed.
>
> (Lab. Code, § 2775 (b)(1).)

The above test does not rely on intentions or contractual labels but instead focuses on specific criteria to classify a worker as an independent contractor. Section 2775, while awkwardly worded for a case such as this one, does not exempt workers' compensation claims. Section 2775 overrides any judicially created standard, especially from cases prior to enactment of the statute. The standard applies to the entire Labor Code, including those sections related to the workers' compensation exclusivity rule and dual employment situations.

Because this statute was not discussed by the parties in the moving or opposition papers, the Court solicited further briefing from the parties.

In its supplemental brief, John Muir argues it was plaintiff's employer pursuant to this statutory standard as well as the *Borello* standard originally argued. In support, the evidence shows John Muir entered into a contract with Cross Country for the provision of travel nurses. The contract required Cross Country to provide worker's compensation, which Cross Country did. (See SSUMF, Fact Nos. 9-11.) While the terms of a contract for the employment are not conclusive (see *Caso, supra,* 163 Cal.App.4th at 899 [citing *Kowalski, supra,* 23 Cal.3d at 176]), John Muir establishes here that it retained responsibility for patient services, to terminate plaintiff, set plaintiff's schedule, and supervise, manage and control her day-to-day work activities. (See SSUMF, Fact. Nos. 3, 5-7.) John Muir further establishes that it supplied the medical devices and equipment plaintiff used while working at its medical facility. (SSUMF, Fact. No. 8, and plaintiff's response.)

Plaintiff, in her supplemental brief, asserts that the California Legislature "explicitly instructs" that non-wage order related claims are governed by the multifactor test set forth in *Borello & Sons*. Plaintiff points out that the statute does allow for situations in which a "court of law rules that the three-part test in [§2775, (b)(1)] *cannot* be applied." (Lab. Code, § 2775 (b)(3), emphasis added.)

Here, the Court has not ruled that the test cannot be applied. On the contrary, the Court itself sought an explanation of how the test affects John Muir's right to summary judgment.

In the most compelling case cited by plaintiff, *Garcia v. Border Transportation Group, LLC* (2018) 28 Cal.App.5th 558, the appellate court reflected on the uncertain state of the law at that time, disclaiming any "opinion on the appropriate test on different records in other situations." (*Id*. at 571.)

More importantly, the *Garcia* decision pre-dates the 2019 passage of section 2775. So, while that court did conclude that *Borello* furnished the proper standard as to non-wage-order claims and noted Borello "appear[ed] to remain the standard for worker's compensation," (*Garcia, supra*, 28 Cal.App.5th at 571), the California Legislature then came to a different conclusion in adopting the ABC test for the *entire* Labor Code, with no exception related to worker's compensation exclusivity or borrowed employees. The Legislature is presumed to be aware of all existing authority related to the issue (see, e.g., *In re W.B.* (2012) 55 Cal.4th 30, 57 ["Legislature is presumed to know about existing case law when it enacts or amends a statute"]), so its failure to create such a statutory exception is significant.

Plaintiff dedicates much discussion to the assertion that public policy prevents application of the statutory standard here, but the Court notes there are also important policies furthered by the application of the dual employer and workers compensation exclusivity rules. These rules motivate procurement of workers compensation coverage and explicit agreements and accountability with respect to who is responsible for obtaining coverage.

John Muir sufficiently shifts the burden here pursuant to the Labor Code's definition of an employee. Accordingly, the Court looks to whether plaintiff has established triable issues of material fact.

C. Step 3: Disputes of Material Fact

A material fact is one that would affect the resolution of the claim raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Plaintiff argues John Muir "did not control plaintiff's functions or duties," citing facts that suggest plaintiff had a significant amount of experience and autonomy in delivering care. (See Additional Material Fact Nos. 1-7, 16-18.) Plaintiff also points out that the contract between John Muir and Cross Country explicitly denies an employment relationship between John Muir and the professionals working on behalf of Cross Country. (Additional Material Fact No. 19.)

Typically, where an employer obtains workers from a labor service like Cross Country, the result is to find the existence of a special employment relationship. (See *Santa Cruz Poultry, supra,* 194 Cal.App.3d at 578-579.) The result is no different here in light of the standard set by Labor Code section 2775. Plaintiff's disputes are insufficient to create a triable issue.

VI. Conclusion

Because John Muir sufficiently shifts the burden of production to plaintiff, and because plaintiff fails to present evidence of material factual disputes, the motion must be granted.

14. 9:00 AM CASE NUMBER: C25-01096
CASE NAME: STEVEN MEDAK VS. SIGURA CONSTRUCTION INC
***HEARING ON MOTION IN RE: TRIAL SETTING PREFERENCE**
FILED BY: MEDAK, STEVEN
TENTATIVE RULING:*

The motion of Plaintiffs Steven Medak and Joyce Philbin for trial preference is **denied without prejudice.**

Background

On April 18, 2025, plaintiffs Steven Medak and Joyce Philbin filed their Complaint against Sigura Construction, Inc. arising from defective and incomplete rehabilitation work to their home at 2646 Marsh Drive, San Ramon, California (the "Property"), following a fire in February 2022. The Complaint asserts causes of action against Sigura for negligence, breach of contract, unfair business practices, and elder abuse based on Sigura's allegedly defective work. Plaintiffs allege that the Property remains uninhabitable.

After appearing in the case, Sigura asserted cross-claims for indemnity against several subcontractors: AM Hardwood Floors, Inc., Enriquez Plumbing, Essentra Heating and Air, Insul-Techs, Inc., J&P Home Builders, Inc., and Rodriguez Drywall. AM Hardwood Floors, Inc. and J&P Home Builders, Inc. were defaulted on September 9, 2025. Insul-Techs, Inc., Essentra Heating and Air, and Rodriguez Drywall have appeared. According to Sigura's case management conference statement, Sigura has been unable to locate or serve Enriquez Plumbing.

On February 20, 2026, Plaintiffs filed this motion for trial preference. Plaintiffs move for mandatory preference under Code of Civil Procedure ("CCP") section 36(a) and discretionary preference under CCP section 36(e). Plaintiffs aver that Mr. Medak is over 70, that he is a co-owner of the Property and a contracting party with substantial interest in the action, and that all essential parties have been served or appeared. The motion is supported by a declaration of Mr. Medak stating that he has been diagnosed with Isaac's Syndrome with Chronic Inflammatory Demyelinating Polyneuropathy (CIDP), an autoimmune disease that affects his nervous system. Mr. Medak declares that he is currently under medical care, takes medications daily in an attempt to suppress the condition, and is "at risk of flare-ups and hospitalizations."

On April 9, 2026, Sigura filed an opposition making two arguments. First, that Mr. Medak's declaration lacks detail because there is no information on the likelihood or severity of flare-ups, hospitalizations, or prognosis. Second, Sigura argues that even if Mr. Medak's declaration were more detailed, it would be legally insufficient because Plaintiffs must support the motion with expert declarations and medical records, and Mr. Medak lacks qualification to testify about his own condition. Sigura also argues that Mr. Medak's statements about his diagnosis are inadmissible hearsay.

On April 9, 2026, Rodriguez filed an opposition. Rodriguez reiterates Sigura's argument on the insufficiency of Plaintiff's health showing but takes the position that "the standard pursuant to CCP § 36(a) does not require competent medical evidence." (Rodriguez Opp. 4:7-8.) Rodriguez then cites *Fox v. Superior Court* (2018) 21 Cal.App.5th 529 for the proposition that Mr. Medak's declaration falls below the standard established in that case. If the motion is granted, Rodriguez asks the Court to sever Sigura's cross-complaint. Rodriguez states that it only appeared on February 11, 2026, has not yet taken depositions, needs time for expert evaluation and reports, and may bring a motion for summary judgment that cannot practically be filed by the May 1, 2026 cutoff given the 120-day trial schedule.

On April 7, 2026, Insul-Techs filed an opposition that mirrors Rodriguez's, for the most part.

On April 23, 2026, Plaintiffs filed an omnibus reply brief. Plaintiffs refute the expert-evidence and hearsay arguments by citing Evidence Code section 702 (personal knowledge lay testimony), Evidence Code section 1250 (then-existing physical condition hearsay exception), and *Fox's* specific holding that CCP section 36(a) has no requirement of a doctor's declaration and may be supported by an attorney's declaration based on information and belief. Second, Plaintiffs argue that the opposing parties' request for a detailed factual showing is tantamount to requesting the "mini-trial" that *Fox* disapproved. However, in the event the Court determines that their showing is insufficient, Plaintiffs offer to submit additional health information for the Court's in camera review.

Legal Standards

CCP section 36(a) states that a party to a civil action who is over 70 years of age may petition the court for a preference, which the court "shall grant" if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

The clear intent of the Legislature is to safeguard litigants who qualify under section 36(a) against the acknowledged risk that death or incapacity might deprive them of the opportunity to have their cases effectively tried and to obtain the appropriate recovery. (*Swaithes v. Superior Ct.* (1989) 212 Cal.App.3d 1082, 1085.) "Mere inconvenience to the court or to other litigants is irrelevant." (*Id.*) "Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference" under section 36(a). (*Id.*) "The trial court has no power to balance the differing interests of opposing litigants in applying the provision."

(*Id*.) The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations. (*Id*. at 1085-86.) Accordingly, section 36(a) is mandatory and absolute in its application in civil cases whenever the litigants are 70 years old. (*Id*. at 1086.)

CCP section 36(e) provides: "Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." "[T]he decision to grant or deny a preferential trial setting rests at all times in the sound discretion of the trial court in light of the totality of the circumstances." (*Salas v. Sears, Roebuck & Co.* (1986) 42 Cal.3d 342, 344.)

Upon the granting of a preference motion, the court "shall set" the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Analysis

(1) Mandatory Preference under CCP § 36(a)

Plaintiff Steven Medak is 76 years old and will turn 77 in April 2026, which satisfies the first factor above. (Medak Decl., ¶ 2.) As a plaintiff and co-owner of the subject Property, he has a substantial interest in the litigation. These issues are not in dispute. However, trial preference for litigants over the age of 70 is not automatic. (*Kline v. Superior Court* (1991) 227 Cal. App. 3d 512, 514.) Instead, the party seeking preference must establish that his or her health is such that preference is necessary, although the party is not required to establish that death or incapacity is imminent or likely to deprive him of the ability to participate in trial. (*Fox*, *supra*, 21 Cal. App. 5th at 534.)

Mr. Medak submits his own declaration in support of the motion in which he states that he was diagnosed with Isaac's Syndrome with CIDP. (Medak Decl., ¶ 4.) Plaintiff further states that he is under medical care for this condition, takes medications daily in an attempt to suppress the condition, and is at risk of "flare-ups and hospitalizations." (*Id*.)

Plaintiff's motion for mandatory preference under CCP section 36(a) is denied without prejudice. The evidence supporting the motion is insufficient. Unlike *Fox v. Superior Court*, there is no showing that Mr. Medak's health is deteriorating, that his condition is progressive, or that flare-ups or hospitalizations are likely to occur with any particular frequency or severity as time goes by. As such, Plaintiff has not shown how his medical condition prejudices his interest in the litigation.

Sigura argues Plaintiff cannot establish poor health without an affidavit from a physician or medical records. That is incorrect. A motion for trial preference under CCP section 36(a) may be supported by nothing more than an attorney's declaration based upon information and belief as to a party's medical diagnosis and prognosis. (*Fox*, *supra*, 21 Cal. App. 5th at 534.) The motion is not denied for want of that kind of evidence. It is denied because nothing in the records indicates that Plaintiff's medical condition requires trial preference.

Plaintiff offers to provide additional information *in camera*. (Mot., p. 4, fn.1.) The Court declines that invitation. Plaintiff cites no authority supporting the use of *in camera* review in this context. If Plaintiff has additional information material to his health showing, that information should be presented in a declaration with notice to opposing parties.

(2) Discretionary Preference under CCP § 36(e)

Plaintiffs alternatively seek preference under CCP section 36(e), which permits the Court to grant preference upon a showing that the interests of justice will be served. Under this provision, the decision rests in the discretion of the Court in light of the totality of the circumstances. (Salas, supra, 42 Cal.3d at 344.) Unlike section 36(a), the analysis under section 36(e) may take into consideration the interests of opposing parties.

Trial preference under CCP section 36(e) is denied. Plaintiffs rely on Mr. Medak's age and medical condition, Ms. Philbin's approaching seventieth birthday, and the fact that the Property has been uninhabitable for over two years. The Court acknowledges the hardship of prolonged displacement. However, the underlying health showing under section 36(e) rests on the same evidence the Court has found insufficient under section 36(a). Ms. Philbin's approaching seventieth birthday adds little to the analysis. The uninhabitability of the Property is a consequence of the alleged wrongdoing for which Plaintiffs seek damages, and is better addressed through the ordinary course of litigation rather than by accelerating trial.

The Court also considers the prejudice raised by Rodriguez Drywall, Inc. and Insul-Techs with respect to Sigura's indemnity cross-claims. Rodriguez appeared in the case on February 11, 2026, and Insul-Techs on December 16, 2025. Both parties state that they have not completed discovery, that their experts require time to evaluate the Property and damages, and that a trial within 120 days would prevent them from bringing pretrial, dispositive motions. Such prejudice would be irrelevant under section 36(a). But under section 36(e), the Court must consider the totality of circumstances and this prejudice is part of that consideration.

Plaintiffs argue in their moving papers that Sigura's indemnity cross-claims can be tried separately from the main case. (MPA, p. 5:4-5.) Severance under CCP section 1048(b) might address the concerns raised by Cross-Defendants, but severance is not before the Court absent a noticed motion that gives all interested parties an opportunity to respond. The Court therefore does not consider severance as part of the section 36(e) analysis.

The interests of justice do not warrant trial preference on this record. Accordingly, the motion is denied under section 36(e), without prejudice.

Disposition

For the reasons stated, Plaintiffs' motion is **denied without prejudice**.

15. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***HEARING ON MOTION IN RE: COMPEL ARBITRATION CONTINUED FROM 01.29.26 HEARING**
FILED BY:
TENTATIVE RULING:*

Please see Line 16.

16. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
<u>*TENTATIVE RULING:*</u>

Defendants, NOCD Florida Behavioral Health, P.A. ("NOCD Florida") and NOCD, Inc. ("NOCD" or, collectively "corporate defendants"), as well as Dr. Sara Conley, move to compel arbitration after plaintiff, Maria Rheba Estante, filed this action. The motions are **<u>denied</u>**. While a court must order arbitration if it determines that a valid agreement to arbitrate exists, the agreement here is unconscionable, as discussed below.

I. Background

Plaintiff worked for defendant NOCD Florida from approximately March 2022 through May 2023 as a Licensed Marriage and Family Therapist. She signed an arbitration agreement at NOCD's request in December of 2022. In the First Amended Complaint, plaintiff alleges six causes of action: including (1) Whistleblower Retaliation in Violation of Labor Code § 1102.5; (2) Wage and Hour Violations Under Labor Code § 203 (Failure To Pay All Wages Due); (3) Wrongful Termination of Employment in Violation of Public Policy; (4) Intentional Infliction of Emotional Distress; (5) Violation of Business and Professions Code § 17200, et seq.; and (6) Violations of Business and Professions Code § 510.

Corporate defendants were served in June of 2025, but failed to timely respond. Plaintiff took their defaults in August. Dr. Sara Conley was served in September and, in response, moved to compel arbitration. However, that motion was continued to correspond with the motion by corporate defendants, which was filed after their default was set aside on February 5, 2026. This ruling addresses both the motion by Dr. Sara Conley and that of NOCD corporate defendants.

Defendants provide a declaration by Matthew Thorne (hereinafter "Thorne Decl."), the Chief Financial Officer of NOCD, Inc., who attaches as Exhibit A the arbitration agreement signed by plaintiff. Defendants argue that the arbitration agreement here covers plaintiff's claims, that it is enforceable under California law, and that this action should be stayed pending arbitration.

In opposition to the motion, plaintiff argues (1) that NOCD Florida cannot enforce the agreement because it is not licensed to do business in California, (2) Sara Conley is not able to enforce the agreement, and (3) the agreement is unconscionable. Plaintiff submits her own declaration in support of the opposition as well as a declaration by counsel, request for judicial notice, and objections to defendants' evidence.

Defendants' reply includes evidence that NOCD Florida is in the process of completing its registration to do business in California pursuant to the California Corporations Code, which is expected to be complete by the date of hearing on this motion.

II. Evidentiary Matters

Plaintiff's objections to the Declaration of Matthew Thorne are **overruled**. Plaintiff's request for judicial notice of search results from the Secretary of State's website on April 8, 2026, showing zero results for NOCD Florida's name, is **granted**.

III. Standard

"A petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The moving parties bear the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez, supra,* 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code Civ. Proc. § 1281].)

IV. Discussion

A. Whether Agreement Was Formed

In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

Here, defendants provide evidence of plaintiff having signed the arbitration agreement at issue. (See Thorne Decl. in Support of Motion, filed October 24, 2025, Ex. A.) In her opposition, plaintiff does not deny having signed it. Her own declaration acknowledges having received the arbitration agreement as a PDF in December 2022, though she draws attention to aspects she contends were procedurally unconscionable and contends she did not realize she was giving up her right to a jury trial by signing the agreement. (Estante Decl., ¶¶3, 5.)

The agreement unambiguously states, in relevant part:

> I UNDERSTAND THAT BY SIGNING THIS AGREEMENT, I AM WAIVING ALL RIGHTS TO A TRIAL OR HEARING BEFORE A JUDGE OR A JURY FOR ANY AND ALL DISPUTES AND CLAIMS SUBJECT TO ARBITRATION UNDER THIS AGREEMENT.

This language, and the similar language found in paragraph 5, is sufficiently “clear and explicit” and, in the absence of fraud, overreaching or excusable neglect, “one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it.” (*Hulsey v. Elsinore Parachute Center* (1985) 168 Cal.App.3d 333, 339.) This even extends to agreements containing terms not understood by the assenting party, assuming that plaintiff here lacked some understanding as to the terms (she does not explicitly state what portion she did not understand). (See, e.g., *Randas v. YMCA of Metropolitan Los Angeles* (1993) 17 Cal.App.4th 158, 163.)

Defendants have met their burden to show the existence of an agreement to arbitrate.

B. Who is Bound / Who May Move to Compel

Plaintiff argues that neither defendant NOCD Florida nor Dr. Sara Conley may compel arbitration under the agreement she signed.

With its reply, NOCD Florida submits a supplemental declaration by Matthew Thorne in which NOCD offers evidence that it is currently in the process of completing its registration to do business in California, purportedly mooting the argument by plaintiff that this motion cannot be maintained by it. The Court is inclined to permit the action to proceed on this representation, but if the party is not in good standing by the time of the hearing on this matter, it shall be brought to the Court’s attention.

Both Conley and NOCD defendants are subject to the description of persons covered by the agreement, which states, "This Agreement applies to all claims that the Company may have against the Employee, as well as all claims that the Employee may have against the Company, *including any of the Company's* partners, affiliated companies, successors, assigns, owners, directors, officers, shareholders, *employees*, *managers,* members, and *agents*." (Thorne Decl., Ex. A, ¶1(b), emphasis added.) Dr. Sara Conley is an employee of NOCD Florida. (Thorne Decl., ¶6.) NOCD is an agent and manager of NOCD Florida. (Thorne Decl., ¶3.)

Accordingly, they are both entitled to enforce the agreement.

C. Unconscionability

Plaintiff contends the arbitration agreements are unconscionable and therefore unenforceable. They bear the burden of proving unconscionability. (*Pinnacle Museum Tower Assn., supra,* 55 Cal.4th at 236.) To briefly recapitulate the principles of unconscionability, the doctrine has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071, citing *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113-114.)

While both procedural and substantive unconscionability must be present in order to declare a contract term unconscionable, they need not be present in the same degree. (*Sanchez v. Valencia Holding Co. LLC* (2015) 61 Cal.4th 899, 910.) "'[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.'" (*Id.,* quoting *Armendariz* at 114.)

1. Procedural Unconscionability

Plaintiff argues the arbitration agreement is procedurally unconscionable. Defendant attempts to argue that it is not, but this particular characteristic of arbitration agreements executed as a condition to employment is difficult to avoid.

The procedural unconscionability analysis is laid out in *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111. The analysis begins with an inquiry into whether the contract is one of adhesion. (*Id*. at pp. 126-127, citations omitted.) An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power on a take-it-or-leave-it basis. (*Ibid*.) Arbitration contracts imposed as a condition of employment are typically adhesive. (*Ibid*.) The pertinent question, then, is whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required. (*Ibid*.) Oppression occurs where a contract involves lack of negotiation and meaningful choice, and surprise occurs where the allegedly unconscionable provision is hidden within a prolix printed form. (*Ibid*.)

The arbitration agreement in this case was presented to plaintiff several months after she was hired as a condition to continued employment. The agreement was presented as a PDF document, apparently without any opportunity for negotiation. No additional circumstances suggest much in the way of procedural unconscionability. The agreement is a stand-alone, clear document which plaintiff likely reviewed outside the presence of any superior, given that she worked remotely. She concedes, by the terms of the agreement itself, that she had the opportunity to consult with counsel if desired. (Thorne Decl., Ex. A, final paragraph.)

Still, the agreement, as in *O.T.O., LLC*, is a contract of adhesion. At paragraphs 12, it states, "Employee has also entered into this Agreement as a term of Employee's continuing employment with the Company." (Thorne Decl., Ex. A, ¶12.) As in *O.T.O., LLC*, the agreement here suffers from some degree of procedural unconscionability, requiring the Court to also consider substantive unconscionability.

2. Substantive Unconscionability

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz, supra*, 24 Cal.4th at 114.) A contract term is not substantively unconscionable when it merely gives one side a greater benefit. (*Pinnacle, supra*, 55 Cal.4th at 246.) "Not all one-sided contract provisions are unconscionable; hence the various intensifiers in our formulations: '*overly* harsh,' '*unduly* oppressive,' '*unreasonably* favorable.'" (*Sanchez, supra,* 61 Cal.4th at 911, emphasis in original.) To be substantively unconscionable, the agreement must be something more than a mere "bad bargain." (*Id.*)

In evaluating substantive unconscionability, courts often look to whether an arbitration agreement meets certain minimum levels of fairness. At a minimum, a mandatory employment arbitration agreement must (1) provide for neutral arbitrators, (2) provide for more than minimal discovery, (3) require a written award that permits limited judicial review, (4) provide for all of the types of relief that would otherwise be available in court, and (5) require the employer to pay the arbitrator's fees and all costs unique to arbitration. Elimination of or interference with any of these basic provisions makes an arbitration agreement substantively unconscionable. (*Armendariz,* 24 Cal.4th at 102-103.)

Here, the agreement specifies the arbitrator shall be neutral, requires a written award, incorporates the rules of the American Arbitration Association ("AAA"), which have been held to be sufficient with respect to discovery, and requires the employer to pay the arbitrator's fees and all costs unique to arbitration.

However, in opposing corporate defendants' motion, plaintiff argues that the agreement is substantively unconscionable on multiple grounds including: (1) it lacks mutuality by carving employer claims out of the arbitration requirement, (2) it eliminates monetary recovery through administrative proceedings, and (3) it bars PAGA claims.

i. Employer Claims Carve-Out

With respect to plaintiff's contention regarding the lack of mutuality, the Court agrees that the provision is more likely to favor the employer here. Defendants, in their reply, cite *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1250 for the idea that a contract "can provide a 'margin of safety' that provides the party with superior bargaining strength a type of extra protection for which it has a legitimate commercial need without being unconscionable." However, several courts since *Baltazar* have concluded that a complete carve-out for confidentiality-related claims results in unfair one-sidedness. (*Farrar v. Direct Commerce, Inc*. (2017) 9 Cal.App.5th 1257, 1273.)

This carve-out provision and its lack of mutuality is substantively unconscionable.

ii. Bar on Monetary Recovery Through Administrative Proceedings

With respect to the substantive unconscionability of the provision denying plaintiff recovery through administrative means, defendants simply assert the Court should not follow binding appellate case law based on a vague reference to the Federal Arbitration Act, preemption in the context of Berman hearings. Defendants cite *Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th

1109.

Plaintiff cites *Hasty v. American Automobile Assn. etc*. (2023) 98 Cal.App.5th 1041, which was decided after *Sonic-Calabasas* and which made the following observation: "Generally applicable contract defenses, such as unconscionability, may be applied to invalidate arbitration agreements without contravening the Federal Arbitration Act or California law." (*Hasty, supra,* 98 Cal.App.5th at 1053, citing *OTO, L.L.C., supra,* 8 Cal.5th at 125 [quote cleaned up].)

In *Hasty*, addressing a similar provision, the court said it had "nothing to do with arbitration. Rather, it is simply a waiver of the right to compensation or relief in the administrative context, which certainly seems one-sided. Government administrative agencies after all generally oversee and enforce statutes and regulations against employers to protect employees." The *Hasty* court went on to state, "[a] waiver of administrative remedies and relief, hidden in an arbitration agreement, is overly harsh and shocks the conscience." (*Id.* at 1060.)

Similarly, here, the provision is substantively unconscionable.

iii. PAGA Waiver

Plaintiff contends the PAGA Waiver in Section 4 is substantively unconscionable.

Provisions barring PAGA actions are unconscionable. As stated by the court in *Hasty*, a ban on all representative PAGA actions is unconscionable "because it requires an employee to waive a right that is not waivable." (*Hasty, supra,* 98 Cal.App.5th at 1063.)

Defendants attempt to argue plaintiff "misreads" the agreement and that it does not prohibit PAGA actions because another paragraph states actions "expressly excluded from arbitration." (NOCD Reply, 5:23-6:2.) But Section 4 of the agreement, entitled, "CLASS, COLLECTIVE OR REPRESENTATIVE ACTION WAIVER," bars all representative actions "including any action or proceeding pursuant to the *California Private Attorneys General Act*." (Thorne Decl., ¶4, emphasis added.)

Defendants further contend "the Agreement does not preclude Plaintiff from pursuing representative PAGA claims in Court." (NOCD Reply, 9:9-10.) This is a "misreading" by defendants. The same paragraph (4) of the agreement goes on to specify that, pursuant to the bar on representative claims, "no claims may be brought or maintained on a […] representative basis *either in Court or in arbitration*."

The PAGA waiver therefore constitutes a third substantively unconscionable provision of the agreement.

Plaintiff also asserts other reasons that the agreement here is unconscionable, which the Court does not reach.

3. Severability

A court can refuse to enforce an unconscionable provision in a contract pursuant to Civil Code section 1670.5. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 514.) If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract, (2) sever any unconscionable clause, or (3) limit the application of any clause to avoid unconscionable results. (*Ibid*.) While the strong preference is to sever the offending term and enforce the balance of the agreement, this is not possible where an agreement is permeated by unconscionability. (*Ibid*.)

Here, the Court concludes that plaintiff identifies three substantively unconscionable provisions, as noted above, and that they permeate the entire purpose of the agreement. The issues cannot be remedied by severing the offending provisions.

Accordingly, the Court denies the motion.

17. 9:00 AM CASE NUMBER: C25-01575
CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.
***HEARING ON MOTION IN RE: RECONSIDERATION OF DENIAL OF CMG MORTGAGE, INC.'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**
FILED BY: CMG MORTGAGE, INC.
****TENTATIVE RULING:****

Continued by the Court to May 20, 2026. The case management conference set for May 15, 2026, is also continued to May 20, 2026.

18. 9:00 AM CASE NUMBER: N25-2436
CASE NAME: PETITION OF:SONJA TYESI
HEARING ON PETITION IN RE: PETITION TO COMPEL PRODUCTION OF RECORDS
FILED BY:
****TENTATIVE RULING:****
Summary:

The hearing on Petitioner Sonja Tyesi's Motion to Compel Production of Records is continued to June 3, 2026 at 9:00 a.m. due to untimely service. No appearance is required on April 22, 2026.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Furthermore, "if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California" (Emphasis added). Applied here, in order for Petitioner's service to be timely, Respondent should have been served 16 court days plus five calendar days before April 22, 2026. That date is March 25, 2026. Petitioner's proof of service filed on April 15, 2026 demonstrates that Petitioner served Respondent Diablo Valley Ranch's agent for service of process by mail on April 15, 2026. The Court finds that service is untimely. The Court continues this hearing to June 3, 2026 in Department 16 at 9:00 a.m. in order to permit Respondents to file an opposition.

The Clerk of the Court is ordered to serve a copy of this ruling to Petitioner and to agent for service of process for Respondent Diablo Valley Ranch. No appearance is required at the hearing on April 22, 2026.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C25-01459
CASE NAME: RAFAEL PONCE VS. RALPH WADE
***HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER LIMITING DEFENDANT'S SPECIAL INTERROGATORIES AND REQUEST FOR SANCTIONS AGAINST DEFENDANT AND THEIR ATTORNEY OF RECORD**
FILED BY: PONCE, RAFAEL
****TENTATIVE RULING:****
Summary

Plaintiff Rafael Ponce's Motion for Protective Order is **denied**. Each party shall bear their own costs and fees for bringing and defending against this motion.

Background

This case involves a landlord-tenant dispute over real property located at 327 South 9th St., Richmond, California ("Subject Property"), that Plaintiff Rafael Ponce ("Plaintiff") had leased from Defendants Ralph Wade, individually, and as Trustee of the Ralph Wade Trust ("Wade" or "Defendants."). Plaintiff is alleged to have breached the lease by failing to pay rent when due. He then vacated the Subject Property, leaving it with significant damage. Plaintiff's complaint alleges sixteen causes of action, primarily based on a legal theory that Defendants had breached their contract with Plaintiff, as well as breached the warranty of habitability, among others. Plaintiff also seeks exemplary damages. Defendants generally deny the allegations and alleged 18 affirmative defenses.

After moving out of the Subject Property, Plaintiff filed this lawsuit claiming 14 separate defects existed at the Subject Property during his tenancy. After conducting investigations, Defendants filed a Cross-Complaint alleging extensive damage to the Subject Property by Plaintiff caused by his "apparent conversion of the home to a marijuana grow house."

On December 17, 2025, Defendants served discovery on Plaintiff in the form of 167 specially prepared interrogatories, which was accompanied by Declaration of Counsel. Plaintiff objected to the number of interrogatories through the "meet and confer" process with Defendant's counsel. The parties, through counsel, were unable to agree on an informal resolution.

On January 21, 2026, Plaintiff filed this Motion for Protective Order seeking a court order reducing the amount of interrogatories that he needs to answer. The Motion is unclear as to how many interrogatories Plaintiff concedes are relevant and should be answered.

On April 8, 2026, Defendants filed an opposition, essentially claiming that each special interrogatory draft by Defendant addresses a specific factual point necessary for the defense of Plaintiffs claims. For each of the 14 defects specifically alleged by Plaintiff, Defendant has included nine (9) interrogatories for a total of 126 interrogatories all related to the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth , Fifteenth, and Sixteenth causes of action.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–

2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra,* 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co*., (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

<u>Protective Order</u>

Under CCP §2034.250, the court may make any protective order "that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense." In seeking a motion for protective order, the party objecting to the scope of discovery must support its objection with admissible evidence establishing the burden, expense, or intrusiveness of the proposed discovery. Cal. Code of Civ. Proc. § 2017.020(a). Counsel should ensure that any declarations supporting a motion for protective order to limit discovery are made by people who have personal knowledge of the facts that support a narrowing of the scope of discovery.

Applied here, the Court finds that Defendants' special interrogatories are relevant as they are likely to lead to the discovery of admissible evidence in this trial. The Court finds that the special interrogatories prepared by Defendant addresses allegations in Plaintiff's claims, and permits the discovery of evidence for the defense of each of these claims. In reviewing the special interrogatories, the Court finds that for each of the 14 defects alleged, Defendant has propounded nine (9) interrogatories for a total of 126 interrogatories. These interrogatories relate to the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth , Fifteenth, and Sixteenth causes of action contained in Plaintiff's complaint. The Court finds that this level of discovery is reasonable, given that Plaintiff has alleged sixteen causes of action, and is alleged to have damaged Defendant's property by converting it into an illegal marijuana grow house.

Plaintiff cannot, now, avoid answering relevant questions that are likely to allow both parties to discover information that will either support or refute the multiple allegations contained in their complaint and cross-complaint. Plaintiff chose to assert these allegations. Now, he is required to produce information that provides information relevant to them. To permit Plaintiff to escape his requirement to provide answers to validate each of the facts that support many of the sixteen causes of action in his complaint would contravene the purpose of discovery, which is to eliminate the "sporting theory of litigation and eliminate surprise at trial." It would also provide Plaintiff an unfair advantage by allowing him to make allegations without an attendant obligation to produce information that support these allegations.

After reviewing the papers submitted by Counsel, and applying the applicable statutory and decisional authority, the Court finds good cause to deny this motion.

Ruling

1. Plaintiff's Motion for Protective order is **denied**.
2. Plaintiff is ordered to produce verified answers to each of the 167 special interrogatories no later than fourteen (14) days from the date of service of this order.
3. Plaintiff's request for sanctions is denied. Each Party shall pay their own attorney's fees and costs in prosecuting and defending against this Motion.

Defendants' counsel is ordered to prepare a proposed order that conforms to this tentative ruling no later than five (5) days from the date of this hearing and e-file with the Court. A copy of the tentative ruling shall be attached to the proposed order.

Law & Motion
Add On

20. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:
The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. No appearance is required on April 22, 2026.

21. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY JUDGMENT (ADVANCED FROM 8/19/26)**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:
The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. No appearance is required on April 22, 2026.

Courtroom Clerk's Session
Add On 2

22. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
***CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>

This Case Management Conference trials the hearing on the demurrer calendared for Line 23. The Parties are ordered to appear via zoom. If the tentative ruling for line 23 is not contested, then no appearance is required on April 22, 2026 and this CMC is continued to October 20, 2026 at 8:30 a.m. The Parties are ordered to file a case management conference statement and to appear via Zoom.

Law & Motion
Add On 2

23. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY:
<u>*TENTATIVE RULING:*</u>

Before the Court is a demurrer filed by real parties in interest KB Home South Bay, Inc. and Trumark Homes to the first amended verified petition for writ of mandate. Respondent City of San Ramon filed and served a joinder in the demurrer by the real parties in interest on January 27, 2026, and the hearing on the joinder was set for August 12, 2026. The Court hereby **advances** the hearing on the City's joinder to be heard concurrently with the demurrer. For the reasons set forth, the demurrer by real parties in interest and the joinder by Respondent City motion are **<u>overruled</u>**.

<u>Background</u>

In the operative first amended verified petition for writ of mandate ("FAP"), petitioner Brian Swanson, AIPC, challenges approvals by the Planning Commission for the City of San Ramon of amendments regarding amendments to two development projects. First, on October 21, 2025, the Planning Commission adopted Resolution Number 12-25 to approve applications by Trumark for a Development Plan Amendment (DPA 2025-0005) and Minor Exception (MX 2025-0003) for the Bishop Ranch 11 (“BR-11”) Project. (FAP, ¶¶ 1, 25, Exh. A-1.) Second, on November 4, 2025, the Planning Commission adopted Resolution Number 14-25 to approve applications by KB Home for a Development Plan Amendment (DPA 2025-0007) and Minor Exception (MX 2025-0005) for the

Bartlett Bishop Ranch 7 ("BR-7") Project. (FAP, ¶¶ 1, 28, Exh. A-2.) The City filed a Notice of Determination for Trumark project BR-11 on October 23, 2025 and for the KB Home project BR-7 on November 5, 2025, and Swanson filed his initial petition commencing this case on November 24, 2025.

The Court will address Petitioner's allegations regarding his exhaustion of administrative remedies or excuse for lack of exhaustion below in the context of the analysis of the grounds for demurrer by the RPs. As to the merits of Petitioner's claims, Petitioner alleges generally that in late 2023, the City of San Ramon certified a General Plan 2040 Environmental Impact Report ("EIR"), adopted a Mitigation Monitoring and Reporting Program, and adopted findings and a Statement of Overriding Conditions. (FAP ¶ 21.) In May 2025, the City adopted a resolution reducing the maximum floor area ratio for the area zoned downtown mixed use – north, thereby lowering the "intensity standards" for that downtown district. (FAP ¶ 22.) In October 2025, shortly before the Notice of Determination of the amendment to the BR-11 project, the City adopted an ordinance which he alleges amended Title D of the SRMC by expanding administrative and discretionary means for reducing on-site parking requirements, including for downtown San Ramon. (FAP ¶ 23.)

The crux of Petitioner's claim is alleged in paragraph 24 of the FAP. "As a result of these actions, the regulatory environment and intensity framework governing downtown San Ramon—including DMU-N FAR and parking standards—changed between the certification of the GP 2040 EIR and the late-2025 approvals for BR 11 and BR 7. Nonetheless, for each project the 244 City relied on the GP 2040 EIR and did not prepare a subsequent or 245 supplemental EIR, subsequent mitigated negative declaration, or other CEQA document addressing these changed circumstances. (Public Resources Code, § 21166; Guidelines, §§ 15162–15164.)" (FAP ¶ 24.)

Based on these general allegations, and other factual allegations regarding the amendments to the two projects, Petitioner alleges (1) a first cause of action for failure to proceed as required by law based on the City's alleged Improper reliance on the General Plan 2040 Prior EIR without subsequent or supplemental review, (2) a second cause of action for failure to proceed as required by law based on the City's alleged inadequate project-level and cumulative impact analysis and inadequate VMT/Transportation analysis, (3) a third cause of action for inadequate mitigation and monitoring of significant environmental impacts and unlawful deferral of mitigation measures, (4) a fourth cause of action based on the City's findings being unsupported by substantial evidence and lacking analytical support, and (5) a fifth cause of action for failure to proceed in the manner required by law based on the absence of, or lack of disclosure of, local CEQA procedures and CEQA appeal structure and fees. The FAP names the City of San Ramon as the Respondent, and Trumark and KB Home as the real parties in interest. (Trumark and KB Home as the real parties in interest are sometimes collectively referred to as the "Demurring Parties" or the "RPs" in this ruling.)

City of San Ramon Joinder

The City of San Ramon filed and served a joinder in the demurrer by the RPs. The joinder is one substantive page and essentially adopts and concurs in the arguments and authorities presented by the RPs in their demurrer. The City appeared at the April 15, 2026 initial hearing on the demurrer, a hearing which the Court continued to this date with the concurrence of all parties as the Court did not become aware of Petitioner's opposition and the reply until too late for the Court to prepare a tentative ruling for the April 15, 2026 hearing. The Court finds good cause under the circumstances in the interests of the parties and judicial efficiency to advance the hearing on the City's joinder from August 12, 2026 to the date of the hearing on the demurrer by the RPs, as the demurrer raises the substantive arguments the City has adopted as its own, and Petitioner has responded to those arguments in his opposition.

Legal Standards for Ruling on Demurrer

In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.) In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the FAP, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the FAP states a claim for relief, the Court gives the FAP "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Save Lafayette Trees v. East Bay Regional Park District* (2021) 66 Cal.App.5th 21, 29.) (*See also Evans v. City of Berkeley, supra,* 38 Cal.4th at 6 [" ' "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]"].)

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.) The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 [" 'With limited exceptions, . . . where an <u>adequate</u> administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.' [Citation omitted, emphasis added.]"].)

Demurring Parties' and Petitioner's Requests for Judicial Notice

Demurring Parties ask the Court to take judicial notice of Title D - Zoning of the San Ramon Municipal Code ("SRMC"). (RPs RJN Exh. 1.) The Court **grants** the unopposed request. (Evid. Code § 452(b).)

Petitioner asks the Court to take judicial notice of (1) the October 21, 2025 City of San Ramon Planning 54 Commission meeting agenda, and specifically the appeal notice language on page 1; (2) the November 4, 2025 City of San Ramon Planning Commission meeting agenda, and specifically the appeal notice language on page 1; (3) the City of San Ramon City Clerk "Zoning Appeal"/appeal instructions webpage; (4) City of San Ramon fee resolution/master fee schedule 65 excerpt reflecting the $4,500 appeal deposit line for appeals from Planning Commission decisions, and (5) portions of the SRMC Zoning Ordinance concerning appeals from Planning Commission decisions to the City Council, specifically sections D6-14, D7-8, D7-9, D7-10, D7-11, D7-12, D7-13, and D7-14. (Petn. RJN Exhs. 1-5.) The Court **grants** the unopposed request. (Evid. Code §§ 452(b) and (c).)

Procedural Note on Late-Filed Opposition

Petitioner's opposition to the demurrer was filed April 6, 2026, four days late for the April 15, 2026 hearing date. Petitioner filed a written request for consideration of the late opposition, explaining he made a calendaring error. RPs filed a reply on the merits responding to the opposition arguments. The Court in its discretion accepted Petitioner's late opposition at the April 15, 2026 hearing and continued the hearing to the present date of April 22, 2026. (*Rancho Mirage Homeowners Association v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [court has discretion to consider late brief].)

Analysis

Real Parties in Interest Trumark and KB Home contend the Court has no jurisdiction over the subject of the first through fifth causes of action of the FAP because they contend Petitioner failed to exhaust his administrative remedies before seeking judicial review, and Petitioner has not alleged facts sufficient to excuse his failure to exhaust his administrative remedies. (Code Civ. Proc. § 430.10(a).) For the same reasons, they contend the first through fifth causes of action fail to allege facts sufficient to state causes of action. (Code Civ. Proc. § 430.10(e).)

Petitioner contends (1) the City appeal provisions of the SRMC are unclear essentially because they do not clearly indicate they apply to decisions by the Planning Commission in matters subject to CEQA; (2) the "availability, clarity, and adequacy of" of the appeal remedy is a factual dispute that cannot be resolved at the pleading stage; (3) the $4,500 deposit fees required for appealing each of the decisions "are unusually high and impose a significant barrier when multiple approvals are involved," citing FAP ¶¶ 17(b)–(c), 19, and 63; and (4) "any additional City-level appeal requirement . . . would have been futile or inadequate to provide a meaningful remedy, particularly given the absence of clear CEQA procedures and the economic barrier," citing FAP ¶¶ 18–19, 63–65.

A. <u>Legal Backdrop Regarding Exhaustion of Administrative Remedies, Excuse, and Futility</u>

The California Supreme Court explained the exhaustion of administrative remedies doctrine and the policies underlying the doctrine in *Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072 as follows: "In general, a party must exhaust administrative remedies before resorting to the courts. [Citations omitted.] Under this rule, an administrative remedy is exhausted only upon 'termination of <u>all available, nonduplicative administrative review procedures</u>.' [Citations omitted.] [¶] 'The exhaustion doctrine is principally grounded on concerns favoring administrative autonomy (i.e., courts should not interfere with an agency determination until the agency has reached a final decision) and judicial efficiency (i.e., overworked courts should decline to intervene in an administrative dispute unless absolutely necessary).' [Citations omitted.] The exhaustion requirement applies to defenses as well as to claims for affirmative relief [citations omitted], and we have described exhaustion of administrative remedies as 'a jurisdictional prerequisite to resort to the courts' [citations omitted]." (*Id*. at 1080.)

Another court explained some of the policies supporting the doctrine and its jurisdictional nature: " 'The requirement of exhaustion of administrative remedy is founded on the theory that the administrative tribunal is created by law to adjudicate the issue sought to be presented to the court, and the issue is within its special jurisdiction. If a court allows a suit to go forward prior to a final administrative determination, it will be interfering with the subject matter of another tribunal.' [Citation omitted.] Consequently, the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion. [Citation omitted.]" (*Tahoe Vista Concerned Citizens v. County of Placer*

(2000) 81 Cal. App. 4th 577, 589.)

"Section 21177 addresses the exhaustion of administrative remedies in CEQA cases, but it does not prescribe a specific appeal process following a determination a project is exempt from CEQA. Instead CEQA requires that if a nonelected official or decisionmaking body determines a project is exempt from CEQA, the agency must allow for an appeal of that determination to the agency's elected decisionmaking body. (§ 21151, subd. (c).) The Guidelines also provide the 'local lead agency may establish procedures governing such appeals.' (Guidelines, § 15061, subd. (e).)" (*McCann v. City of San Diego* (2021) 70 Cal. App. 5th 51, 76.) (*See also Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 492-493 [CEQA does not preempt local administrative process; it contemplate local agencies establishing their own procedures, rejecting petitioner's claim he was excused from exhausting local appeal procedure based on argument regarding city's "regulatory morass" and that CEQA preempted the local procedures].)

"Several cases recognize that when an agency elects to adopt an administrative appeal process, the common law rule requiring the exhaustion of administrative remedies applies to CEQA litigation and the scope of the remedy is 'determined by the procedures applicable to the public agency in question.' [Citation omitted.] Thus, 'whether the exhaustion doctrine applies depends on the relevant procedures available in a specific jurisdiction.' [Citation omitted.] <u>Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination</u>. [Citation omitted.]" (*McCann, supra,* 60 Cal.App.5th at 77 [emphasis added].)

There are exceptions to the exhaustion requirement, including futility which is one exception Petitioner alleges in the FAP. " 'The futility exception requires that the party invoking the exception "can positively state that the [agency] has declared what its ruling will be on a particular case." ' [Citations omitted.]" (*Coachella Valley Mosquito & Vector Control Dist., supra*, 35 Cal.4th at 1080-1081.) The futility exception is a narrow one. (*Steinhart v. County of Los Angeles* (2010) 47 Cal. 4th 1298, 1313.) It "applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. [Citation omitted.]" (*Id.* at 1313-1314.) It requires proof that when the appeal would have been submitted to the City Council in this case, the City Council had "predetermined its position." (*Id.* at 1314 [rejecting argument that the position the County took in a subsequent court action alone was a basis for invoking the futility exception].)

B. <u>Summary of Relevant Appeal Provisions of Zoning Ordinance and Notices to Public of Appeal Rights</u>

Petitioner alleges that the decisions by the Planning Commission that he seeks to challenge in this action were characterized by the City as "minor" amendments to previously approved projects subject to a certified EIR that the Planning Commission. The City concluded the minor amendments did not require subsequent or supplemental environmental review, as the Planning Commission found there was no change in parking made by the amendments. (FAP ¶¶ 1, 2.)

Title D of the SRMC is the Zoning Ordinance. The table of contents describing the different divisions of the Zoning Ordinance indicates that Division 7 addresses "Zoning Ordinance Administration." The Division headings make it clear the Zoning Ordinance covers all manner of issues involving land uses and zoning. The concept of "land uses" by its terms is broad; nothing suggests it would not cover land uses where CEQA may apply. Division 7's title is not limited to "zoning administration" but rather by its terms applies to the administration of the "Zoning Ordinance." The Court finds nothing ambiguous about the heading of Chapter II in Division D7 "Zoning Ordinance Administration" "Appeals and Calls for Review." (*See also, for example,* D1-5(A) under Rules of Interpretation ["Any official interpretation by the Director or Planning Commission shall be available for public review upon request and may be appealed pursuant to Division D7, Chapter 2"], D2-3(a)(3)(d), D4-32(f), D5-12(A) and (C), D6-18(a)(2) and (6)(c), among approximately 15 sections referring to appeals pursuant to D7, Chapter II].) Division D7 also has a chapter regarding public hearings (Chapter IV) which includes a number of references to CEQA specifically, all under the umbrella of Division D7 Zoning Ordinance Administration, with the hearings clearly related to the substantive matters governed by the prior provisions of the Zoning Ordinance.

Regarding the right to appeal decisions by the Planning Commission, Petitioner acknowledges the first page of each of the Planning Commission agendas for the October 21, 2025 and November 4, 2025 hearings includes a notice regarding the right to appeal decisions by the Commission. The October 21, 2025 agenda explains the public's right to appeal as follows: "If you challenge in Court any zoning or planning actions taken by the Planning Commission, you may be limited to raising only those issues you or someone else raised at the public hearing conducted herein or in written correspondence delivered to the Planning Commission at or prior to the public hearing. <u>Decisions of the Planning Commission</u> may be appealed within 10 (ten) calendar days of decision by filing a letter stating the grounds for the appeal along with the appropriate filing fee in the City Clerk's office." (Petn. RJN Exh. 1, p. 1 [emphasis added].) The November 4, 2025 agenda has identical language regarding the right to appeal. (Petn. RJN Exh. 2, p. 1.) The fee for filing an appeal of a Planning Commission decision is $4,500. (Petn. RJN Exhs. 3, 4.)

Both Petitioner and Demurring Parties direct the Court to the appeal provisions of title D of the SRMC. Section D7-8(A)(2) provides that "Decisions made by the [Planning] Commission may be appealed to the [City] Council." Any interested party may file an appeal. (SRMC § D7-9.) The appeal "shall be initiated within 10 calendar days of the date of the decision." (SRMC § D7-10.) SRMC Section D7-11(A) describes the method of taking an appeal, which requires the appeal to be filed with the City Clerk accompanied by the applicable filing fee. SRMC Section D7-11 explains that the filing of a timely appeal stays the decision appealed from "until a final decision on the matter has been rendered by the appropriate review authority." (SRMC § D7-11(C).)

C. <u>Application of Exhaustion Doctrine to Petitioner and the FAP</u>

It is undisputed that Petitioner did not appeal the decisions of the Planning Commission subject to this lawsuit to the City Council. The FAP does not allege that he appealed, only that he filed this lawsuit after the Planning Commission's decisions.

Petitioner contends in effect he did not have to pursue an appeal to the City Council because there was "no clearly disclosed <u>CEQA-specific</u> appeal path" as the appeal provisions in the SRMC are "framed as zoning/planning actions." (Opp. p. 6, ll. 151-152 [emphasis added].) (*See also* FAP ¶ 17.a. [no "CEQA-specific appeal process or fee structure . . . separate from land-use, planning, or zoning appeals."]; FAP ¶ 17.b. [fee schedule for an appeal not "CEQA-specific appeal framework"]; FAP ¶ 63 [appeals are framed "in terms of zoning and land-use decisions under San Ramon Municipal Code section D7-8 and do not separately identify any CEQA-focused appeal mechanism or fee."].)

Petitioner, however, fails to cite any legal authority that requires the City to create a CEQA-specific set of appeal procedures and fee schedules, or any authority that holds appeal procedures in a municipal code applicable to <u>any or all zoning and land use decisions</u> made by the City do not encompass appeals of zoning and land use decisions that are subject to CEQA, or decisions which an objecting member of the public contends should be subject to CEQA. The exhaustion doctrine under the authorities cited above requires that a party pursue <u>any</u> available avenue of public agency appeal first before seeking the intervention of the Courts.

The decision in *Tahoe Vista Concerned Citizens* addressed a failure to specify issues subject to a petitioner's appeal of a planning commission decision to the Board of Supervisors pursuant to the provisions of the Placer County Code. The Court applied the exhaustion doctrine to issues not identified in its appeal based on the provisions of the Placer County Code. (*Id.* at 591-592 ["The Placer County Code allows persons who appear at a Planning Commission hearing to appeal the Planning Commission's decision to the Board of Supervisors. The Placer County Code describes the scope of the appeal hearing as follows: 'At the hearing (a hearing conducted "over again"), the appellate body shall initiate a discussion limited to only those issues that are the specific subject of the appeal, and, in addition, the specific grounds for the appeal. . . . ' [Citation omitted.] [¶] These procedures thus provided plaintiffs with an appeal from the Planning Commission's decision, but required plaintiffs to specify the particular subject or grounds of the appeal," holding "a failure to raise an issue in an administrative appeal after raising the issue in the first public or administrative hearing constitutes a failure to exhaust administrative remedies and prevents the issue from being raised in a subsequent judicial action. [Citation omitted.]"].)

In *Tahoe Vista Concerned Citizens*, the Court cites and relies in part on *Park Area Neighbors v. Town of Fairfax* (1994) 29 Cal.App.4th 1442. (*See Tahoe Vista Concerned Citizens, supra,* 81 Cal.App.4th at 591.) The Fairfax Town Code provided for "appeal of a planning commission action to the town council." (*Park Area Neighbors, supra,* 29 Cal.App.4th at 1448.) The Court in *Park Area Neighbors* held the petitioner's failure to appeal the decision of the Planning Commission approving a hillside development project, including related permits and variances over which the Planning Commission had authority to decide, meant the petitioners had not exhausted their administrative remedies as to those approvals, and the petition challenging them could not be considered by the Court. (*Park Area Neighbors, supra,* 81 Cal.App.4th at 1445, 1450 [holding that the "complete failure of PAN's [petitioner's] members to assert any challenge before the planning commission or town council to the project's compliance with density ordinances, the applicability of the adjustment exclusion and the lack of a resolution on traffic study methodology, <u>or to appeal the planning commission's actions in the manner prescribed by the town code, precludes the assertion of those challenges in this judicial proceeding</u>." (Emphasis added.)].) Neither *Tahoe Vista Concerned Citizens* nor *Park Area Neighbors* suggests that the applicable local codes involved in those cases had CEQA-specific procedures for appeal of planning commission decisions rather than appeal procedures generally applicable to <u>any</u> decision by the planning commission.

Another decision cited by RPs similarly involves a petitioner's failure to appeal a decision by the planning commission of a town. The Court explained, "Section 18.58.030 of the Corte Madera Municipal Code provides, generally, for an appeal to the town council from <u>any action</u> taken by the planning commission. Section 18.46.070 specifically provides for an appeal to the council from action taken by the planning commission upon an application for a conditional use permit. Section 18.46.070, with which section 18.58.030 is substantially identical in pertinent terms, states: 'Within ten days following the date of a decision of the planning commission . . . , the decision may be appealed to the town council by the applicant *or by any other interested party*.' " (*Environmental Law Fund, Inc. v. Town of Corte Madera* (1975) 49 Cal. App. 3d 105, 111 [italics in original, underscoring added].) The SRMC contains similar language, applicable to appeals of any decision by the Planning Commission and not limited to ones not involving a claim that CEQA is in some way implicated in the decision being appealed. Unlike the petitioners in the *Corte Madera* case, Petitioner has alleged that he was informed of the public hearings before the Planning Commission because he participated in those hearings, making comments and objections to the approval of the amendments to the projects in connection before the Planning Commission approval. (FAP ¶¶ 7, 16, 64.) (See also Petn. RJN Exhs. 1, 2 [Planning Comm. Agendas with notice of appeal rights].) The *Corte Madera* decision also supports that the exhaustion of administrative remedies doctrine applies and bars Petitioner's pursuit of this action for failure to appeal the Planning Commission's decisions to the City Council under the SRMC.

Petitioner cites Public Resources Code section 21082 and Guidelines section 15022 in support of his argument that the general administrative appeal process provided in the SRMC was not adequate and that CEQA-specific procedures for appeal were required. Neither supports Petitioner's position.

Public Resources Code section 21082 states: "All public agencies shall adopt by ordinance, resolution, rule, or regulation, objectives, criteria, and procedures for the evaluation of projects and the preparation of environmental impact reports and negative declarations pursuant to this division." It says nothing about appeal procedures from the decisions by the local body evaluating the project and the application of CEQA. Guidelines section 15022 similarly provides, "Each public agency shall adopt objectives, criteria, and specific procedures consistent with CEQA and these Guidelines for administering its responsibilities under CEQA, including the orderly evaluation of projects and preparation of environmental documents." (14 C.C.R. § 15022(a).) The list of implementing procedures that a local agency should adopt does not refer to any appeal procedures, including any appeal procedures specific to CEQA. (*Id.*)

Another provision of the Guidelines specifically addressing appeals from a determination that a project is exempt from CEQA exists, but the provision does not help Petitioner, as nothing in the Guideline indicates that the local agency's generally applicable appeal procedures for land use decisions may not govern such an appeal: "When a non-elected official or decisionmaking body of a local lead agency decides that a project is exempt from CEQA, and the public agency approves or determines to carry out the project, the decision that the project is exempt may be appealed to the local lead agency's elected decisionmaking body, if one exists. A local lead agency may establish procedures governing such appeals." (14 C.C.R. 15061(e).)

While Petitioner contends the SRMC does not clearly state that the appeal procedures apply to land use and zoning decisions which may involve CEQA determinations, the provisions for appeal on their face apply to <u>any</u> decisions by the Planning Commission. The Planning Commission agendas advised the public that an appeal may be made from the decisions made by that body and that there was a ten-day deadline to appeal, as Petitioner concedes. The FAP alleges implicitly the SRMC provides a general avenue of appeal from Planning Commission decisions, which was stated in the public notice on the first page of the Planning Commission hearing agendas, and in the cited sections of the SRMC. Nothing in the SRMC limits the right to appeal a Planning Commission decision to decisions in which CEQA is not involved. Indeed, CEQA can be theoretically pertinent to any land use or zoning decision implicitly as this case illustrates. Petitioner is challenging the Planning Commission's determination that the amendments to BR-11 and BR-7 were "minor" and did not require further review or analysis under CEQA. (FAP ¶¶ 2, 25, 26, 28.)

Petitioner had an administrative remedy and failed to exhaust it regarding both of the decisions subject to this action. (*McCann, supra,* 60 Cal.App.5th at 77 ["Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]"].) That Petitioner may not have been aware of or may not have understood his obligation to pursue the right to appeal decisions of the Planning Commission to the City Council in instances where CEQA is in some manner at issue does not mean that he is excused from compliance with the exhaustion requirement. (*Ventura29 LLC v. City of San Buenaventura* (2023) 87 Cal.App.5th 1028, 1041-1042 [holding demurrer to complaint in condemnation action properly sustained for lack of exhaustion of administrative remedies, rejecting petitioner's arguments that his lack of knowledge of the right to appeal and city's failure to inform him of right to appeal excused it from exhaustion requirement].) Petitioner has not cited any authority that a party's lack of knowledge or understanding of the available appeal procedures excuses exhaustion.

D. Application of Futility Exception

As to the futility exception, the facts alleged in the FAP do not show that the City Council had predetermined its position on any appeal of the Planning Commission's decisions subject to this action. Petitioner cites only a November 25, 2025 comment by the mayor, who is only one member of the City Council, regarding appeals of a Planning Commission decision in general as part of a discussion on appeal fees. Petitioner alleges that, "During the November 25, 2025 appeal-fee discussion, the Mayor stated, in substance, that if a resident cannot obtain support from a councilmember to bring an issue forward, 'the odds of a successful appeal [are] probably not going to be great anyway' (Exhibit E-5 [November 25, 2025 Mayor comments])." (FAP ¶ 17.d. and Exh. E-5.) Petitioner further alleges, "This statement underscores that the City's discretionary appeal process is both politically driven and unlikely to provide meaningful CEQA relief." (FAP ¶ 17.d.) These allegations as a matter of law fail to allege facts sufficient to meet the futility exception to the exhaustion doctrine under the authorities cited above, both because they are general statements about appeals not addressed to the specific project approvals in question, and they post-dated the deadline for filing appeals of both of the project approvals challenged in the FAP.

E. **Inadequacy of Remedy Exception to Exhaustion Doctrine and "Excessive" Fee**

Another exception to the exhaustion of administrative remedies doctrine is that the doctrine does not apply when the administrative remedy is inadequate. (*Ventura29 LLC, supra*, 87 Cal. App. 5th at 1038.) Petitioner argues that he is excused from compliance with the exhaustion requirement of appealing the Planning Commission's decisions to the City Council because the City's appeal fees are excessive, an amount which he alleges is a deposit of $4,500 per appeal.

RPs argue that the City is allowed to charge fees for an appeal, citing *Friends of Glendora v. City of*

Glendora (2010) 182 Cal.App.4th 573. In that case, the Court of Appeal rejected the appellant's legal argument that the local agency was precluded from charging a fee for an appeal claiming a violation of CEQA. (*Id.* at 580 ["In deference to the mandate of section 21083.1, we decline to interpret CEQA as requiring that agencies such as the City waive any and all of their customary fees for filing administrative appeals of decisions, simply because the appeal is based on CEQA."].) However, the Court stated that appellant in that case <u>specifically did not raise a challenge to the amount of the fee</u>. (*Id.*) Here, Petitioner has made that challenge.

RPs contend in their reply that the California Supreme Court addressed a similar argument in *Sea & Sage Audubon Society, Inc. v. Planning Commission of the City of Anaheim* (1983) 34 Cal.3d 412. In that case, involving the Subdivision Map Act and approval of a proposed subdivision on that statutory scheme, the petitioner argued that it should be excused from its failure to exhaust administrative remedies because the amount of the appeal fee was arbitrary and excessive. (*Id.* at 419– 422.) The fee in that case was $607. The issue of the reasonableness of the appeal fee was raised by plaintiffs for the first time on appeal from an order granting the defendants' motion for summary judgment. The Court rejected the plaintiffs' claim that the reasonableness of the fee was purely a question of law that could be resolved on appeal though not raised below. The Court stated:

> Although plaintiffs characterize the question of the validity of the fee as purely a question of law, it is plain that the "reasonableness" of a particular fee under section 66451.2 cannot properly be resolved in the abstract. <u>Without an evidentiary record, we cannot determine either (1) the full range or nature of the administrative services and functions which are properly covered by the fee, (2) the reasonable cost of such services and functions, or (3) whether the fee structure in question bears a reasonable relationship to such costs</u>. While plaintiffs assert that the fee at issue is arbitrary on its face, <u>in the absence of relevant factual data we are in no position to determine whether the $607 figure is excessive or whether a fee schedule under which the amount of the fee varies with the size of the proposed development is necessarily "unreasonable" as a matter of law</u>. Because plaintiffs did not pursue this claim below, neither the city nor Anaheim Hills <u>was afforded an opportunity to present relevant factual evidence to support the fee</u>. Indeed, given the presumption of validity traditionally accorded to legislative acts, it is plaintiffs – rather than the city or Anaheim Hills -- who bore the initial burden of presenting a prima facie <u>evidentiary</u> showing as to the invalidity of the fee. Having failed to make any such showing, plaintiffs cannot challenge the reasonableness of the fee for the first time on appeal.

(*Id.* at 421-422 [emphasis added].)

RPs argue that Petitioner failed to preserve the issue for appeal because he did not try to file his appeal without the fee or file the appeal and pay the fee under protest. Neither of the decisions cited by RPs in their reply indicate that either option was <u>required</u> for the excuse from the exhaustion requirement on this ground to be preserved and asserted in the FAP. (*See Sea & Sage Audubon*

Society, supra, 34 Cal.3d at 416, 421-422 [petitioner's appeal filing was rejected for lack of payment of the fee, but unreasonableness of amount not considered as raised for the first time on appeal]; *but see Friends of Glendora, supra,* 182 Cal.App.4th at 574 [fee paid under protest].)

Petitioner alleges that the City's "appeal-deposit requirements are unusually high compared to many California jurisdictions and impose a significant financial barrier to residents and community members seeking to challenge CEQA determinations, particularly when multiple project approvals are involved." (FAP ¶ 17.c.) He alleges the $4,500 per project deposit is not a reasonable fee for review where CEQA is involved. (FAP ¶ 18.) Petitioner also alleges that "the City's appeal-fee structure renders such appeals economically prohibitive, particularly when multiplied across separate project approvals," and that "[t]he City's appeal-fee structure <u>is not calibrated to CEQA environmental review</u>, is unusually high, and discourages public use of any purported 'appeal' process that might exist." (FAP ¶¶ 19(b) and 34 [emphasis added].) He alleges that the appeal procedures and the fee deposit for an appeal "create a significant economic and procedural barrier for residents seeking to obtain CEQA review of BR 11 and BR 7 and tend to favor large, well-capitalized downtown landholders and their successor developers over individual community members." (FAP ¶ 63.) Reasonably construing the FAP, Petitioner is alleging that one of the grounds on which he is excused from compliance with the exhaustion requirement is because the fee imposed to file an appeal of each decision is excessive and unreasonable and renders the appeal remedy provided in the Zoning Ordinance <u>inadequate and ineffective as an administrative remedy</u>. (FAP ¶¶ 5, 17.c., 18, 19(b), 34, 63.)

RPs contend that even if he alleges the excessive fee as a basis for excuse from compliance with the exhaustion requirement (which he does in the FAP), the FAP does not allege "facts showing that the City's appeal fee exceeds the estimated reasonable cost of providing the services for which the fee is charged." Petitioner does more than merely allege the appeal fee is "excessive" and "unusual," characterizations that alone are not facts showing the fees are unreasonable or outside the bounds of costs the City could reasonably expect to incur to address appeals from the Planning Commission. (*See Sea & Sage Audubon Society, supra,* 34 Cal.3d at 421-422 [suggesting additional facts may need to address the reasonable cost of administrative services covered by the fee, and whether the fee amount bears a reasonable relationship to the cost of those services].) Petitioner has alleged other facts, summarized above, including that "[t]hese appeal-deposit requirements are unusually high compared to many California jurisdictions," that the fees are so high they "impose a significant financial barrier to residents and community members seeking to challenge CEQA determinations, particularly when multiple project approvals are involved," and that they are unreasonable and "not calibrated to CEQA environmental review." (FAP ¶ 17.c., 19(b), 34, and 63.) The FAP alleges sufficient facts, accepted as true on demurrer, to implicate the "inadequate remedy" exception to the exhaustion requirement based on the excessive appeal fees which cannot be determined as a matter of law from the allegations of the FAP alone.